

The Background of the Picture:

Tattooing in Mesopotamia, Egypt, the Mediterranean, and the Bible¹

Introduction:

Modern Jews are not the only ones to confront the practice of tattooing. It is a cultural challenge which is illustrated even in the Bible. Some Biblical passages simply attest to the use of corporal marks: Genesis 4:15 and Ezekiel 9:4. Others explicitly promote their use such as Isaiah 44:5 and 49:16. While still another passage, Leviticus 19:28, prohibits them. All that is known about the Israelite attitude on tattooing comes from these texts. Herein lies the problem. These passages are really too few and too vague to accurately account for the Israelite attitude on tattooing alone.

However, with the evidence on tattooing from the neighboring regions of ancient Israel, we can develop and better comprehend the picture of ancient Israelite engagement with tattooing. Archeological remains and surviving texts testify that tattooing was prevalent in the regions that surrounded ancient Israel: Mesopotamia, Egypt, and the Mediterranean. While these surrounding cultures were in many ways distinct from ancient Israel, cultural boundaries were still permeable. Therefore, we can use what we know about tattooing in the ancient Near East and Mediterranean regions more broadly to help us understand the use of corporal marks, particularly the tattoo, in ancient Israel. As we consider this evidence, we will ask the following questions:

1. Special acknowledgement and gratitude is extended to my thesis advisor, Dr. Nili Fox. Along with her intellectual guidance, the organization of this chapter is largely influence by her similar interest and work on this subject, which will be published as part of a larger work in the near future.

- (1) Was the corporal mark within these neighboring regions a means of personal or communal communication?
- (2) What message(s) were intended to be conveyed in the cultures of these societies through the use of the corporal mark: cultic, therapeutic, proprietary, punitive, decorative, etc.?
- (3) More importantly, how will these marks and their cultural values be reflected or refracted in the Biblical text?

With the background of tattooing in place, this chapter will then move on to consider the role tattooing had within the most ancient form of Judaism.

Mesopotamian Region:

Tattooing, as far as can be established, may have begun in Mesopotamia during the Ubaid period around 4500 B.C.E.² The evidence to support this claim comes from southern Iraq, where two clay female figurines were unearthed. On their frame are painted lines and dots as well as incised marks.³ As no tattooed skins have been discovered to substantiate that the marks on these figurines are tattoos, the evidence is only suggestive.⁴ However, similar marked figurines were discovered in Egypt which closely resemble the tattoo-

2. All dates in this section are according to Jack M. Sasson's chronology in *Civilizations of the Ancient Near East*, Vol. II. (London: Simon & Schuster and Prentice Hall International, 1995) p. 660.

3. See Dominique Colon, *Ancient Near Eastern Art* (Berkeley: University of California Press, 1995) p. 46, fig. 25 or Nili Fox's chapter "Body Marking: Tattoos, Brands, and Piercing," in *Bodies on Parade: Studies on Dress and Identity in the Biblical World* (2008), forthcoming.

4. The most likely reason for this lack of evidence is due to the specific climatic conditions present in the Mesopotamian region, which are not conducive to preservation. The dry climate of Egypt, on the other hand, along with the detailed mummification process ensured the survival of important pieces of evidence from its culture: skin, papyri, etc. Additionally, at this period of time it was too early for text.

markings later found on the skins of mummies.⁵ Some researchers, therefore, infer that these markings too are indicative of actual tattooing during this early period in the Mesopotamian region.

Figurines, both female and male, from the Old Babylonian (OB) period (ca. 2000-1595 B.C.E.) continue to allude to the presence of tattooing within Mesopotamian culture. These OB period figurines display incised marks, which could represent anything from clothing to ornaments to even some form of corporal marking.⁶ However, unlike the previous period, there are texts which identify that a distinctive mark was indeed used during the OB period called an *abbuttu*.⁷ The laws of Eshnunna, the Code of Hammurabi, a legal anecdote in the lexical series of *ana ittišu*, a treaty between Niqmepa (King of Alalakh) and Ir-IM (King of Tunip) all testify that the mark of the *abbuttu* was placed upon individuals of the lowest class of society only, that of slavery.⁸

Scholars debate, however, as to the nature of the slave mark of the *abbuttu*. Was it a clay marker, a shaved head with only a lock of hair remaining, a brand, or even a tattoo? One position suggests that the *abbuttu* was “a small tablet of clay or metal hung on a chain

5. This evidence will be discussed later in the chapter.

6. Fox, Nili. “Body Markings: Tattoos, brands, and Piercing.”

7. The exact act and form, as well as the function of the *abbuttu* will be defined as the chapter ensues. However, it is important to note the Sumerian parallel for *abbuttu* is GAR . [Hurowitz, Victor. “‘His Master Shall Pierce His Ear with an Awl’ (Exodus 21:6) – Marking Slaves in the Bible in Light of Akkadian Sources” in *Proceedings of the American Academy for Jewish Research* 58. Nahum Sarna, ed. (Jerusalem and New York: American Academy for Jewish Research, 1992) p. 55]

8. Hurowitz notes that other references may be located from the Chicago Assyrian Dictionary (CAD) AI. [*Ibid.*] Also, anthropologists have thoroughly acknowledged that Babylonian society was stratified, done so according to economic class, rather than creating a caste system based on race, ethnicity, or birth. Thus, “to be sold or to sell oneself into slavery because of poverty or indebtedness was a misfortune that could befall any man,” writes Isaac Mendelsohn, who studied the legal texts of the OB period. In theory, one could be released from slavery if one’s financial situation improved. “However, as long as he remained a slave,” Mendelsohn continues, “he was legally regarded as a chattel, and as such he was marked.” [Mendelsohn, Isaac. *Slavery in the Ancient Near East: A Comparative Study of Slavery in Babylonia, Assyria, Syria, and Palestine from the Middle of the Third Millennium to the End of the First Millennium*. Oxford University Press: New York, 1949. p.42]

around the neck, wrist, or ankle of the slave.”⁹ In the pre-Hammurabi period, olive-shaped tags of clay containing the owner’s name were affixed to the necks and horns of animals. It seems plausible, to supporters of this theory, that all chattel – whether human or animal – would be similarly marked. As a document from the period states, a rebellious child shall be put into the servants’ quarters and “the *abbuttu* shall be affixed and placed upon his foot.”¹⁰ More recent scholars on the topic, though, have abandoned this assertion.¹¹

Recent scholarship, nonetheless, concedes that the mark of the *abbuttu* was temporary. But rather than a tag, the *abbuttu* was possibly “a curl or lock of hair from a specific part of the scalp, the rest having been shaved.”¹² The conclusion comes from numerous texts which closely associate the implementation and removal of the mark to “hair,” “shaving,” and/or “shearer.”¹³ For example, according to the oldest textual witness from the period,

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9. Mendelsohn, *Slavery*, p. 44. Mendelsohn is supported in part by Dandamaev, who writes, “It is possible that some slaves wore tags around their necks. One such tag with the name of a slave woman intended to identify her is mentioned in a guide book of the British Museum.” [Muhammed Dandamaev. *Slavery in Babylonia: From Nabopolassar to Alexander the Great 626-331 BC* (DeKalb, IL: Northern Illinois University Press, 1984) p. 234.] Also, Dandamaev writes, “Sometimes, apparently, the marking was limited to attaching a wooden or metal tag with the appropriate symbol to the wrist of the slave (p.489). There is evidence of metal tags being used to mark slaves, but it does not arrive until the Roman period, when Emperor Constantine rules in 316 C.E. that slaves should no longer be tattooed on the faces. See the discussion of tattooing in the Mediterranean region found below.
 10. Mendelsohn, *Slavery*, p. 45 To support his interpretation, Mendelsohn presents other documents from the period. See pp. 44-45.
 11. Hurowitz, “His Master,” pp.53-54, bluntly remarks, “I. Mendelsohn...mistakenly explained the *abbuttum* mentioned in Akkadian texts as an identity tag tied to the slave.” Additionally, Dr. Nili Fox, in her in-going research on the topic notes, “Mendelsohn states that in some cases the *abbuttu* was actually a tag worn by the slave, but that theory seems to be incorrect.”
 12. Fox, Nili. “Body Markings.” The definition can also be found in the Chicago Assyrian Dictionary (CAD A/1) pp. 48-49.
 13. Laws 226 and 227 in the Code of Hammurabi “deal with the case of a ‘shearer’ who unlawfully cut off the slave mark.” [Mendelsohn, *Slavery*, p. 43] Another example provided by Mendelsohn comes from the reign of Ammiditana (ca. 1620-1583 B.C.E.) of the First Babylonian Dynasty. According his translation of the document, a certain Warad-Bunene had been illegally sold to a foreign country. After serving there five years, he managed to flee and return o his native city of Babylon. When he returned, “the authorities, in accordance with the law of paragraph 280 of the Hammurabi Code, set him free. They said to him: ‘you are cleansed [i.e. free], your slave mark (*abbuttum*) is herewith cut off.”

the Sumerian Family Law:¹⁴ “If a son to his father says, ‘not my father are you,’ he (the father) shall cut his [son’s] hair, put an *abbuttu* upon him, and sell him for money.”¹⁵

Even so, not all scholars are ready to rule out the possibility that – along with shaving, which is temporary – a permanent corporal mark on the forehead could have also been made. As Mohammed Dandamaev taught in his groundbreaking work on slavery in Babylonia, the *abbuttu* was often a brand, “placed on the shaven head by a barber who also functioned as the professional marker of slaves.”¹⁶ A literary text from Bogaskoi, Turkey illustrates his point. “When an individual will be imprisoned in slaves’ prison, fetters should grip his feet, [and] the brand upon his face is surely an *abbuttu*.”¹⁷

Whether as a brand, a lock of hair, or a tag, all theories are valid for no evidence exists which definitively states what form the *abbuttu* took. Therefore, instead of distilling from the remnant texts one type of corporal mark and then championing it above the others, I suggest that multiple forms of the slave mark – collectively known as *abbuttu* – in the OB period may have been implemented throughout Mesopotamia. This includes the as of yet to be mentioned possibility that the *abbuttu* was a tattoo. While the tattoo theory has yet

14. The Sumerian Family Laws were originally written sometime between 2000-1700 B.C.E. Paul Haupt (1859-1926) is credited as the first to scientifically treat the bi-lingual Sumerian-Akkadian text. The name of these texts comes from the title of his published work in German, *Die Sumerischen Familiengesetze* (The Sumerian Family Laws).

15. Mendelsohn, *Slavery*, p. 43

16. Dandamaev. *Slavery in Babylonia*, p. 233. Later in the Greco-Roman period of antiquity Petronius, describing the implementation of the tattoo as a mark of punishment will write: “A barber will shave the heads and the eyebrows...and then he himself will mark your faces with an elaborate inscription.” [C.P. Jones. “Stigma and Tattoo.” *Written on the Body: The Tattoo in European and American History*. Caplan, J. ed. (Princeton, NJ: Princeton University Press, 2000) p.1] See the section on the Mediterranean region for further explanation.

17. Originally edited by E. Ebeling, “Ein Hymnus auf die Suprematie des Sonnengottes in Exemplaren aus Assur und Bogaskoi,” *Orientalia* N.S. 23 (1954) 209-216, a translation and transliteration of this hymn can be found in Hurowitz, “His Master,” pp. 57-58. Further evidence of the corporal mark as the brand will be presented in the material from the Neo-Babylonian period below. Additionally, the forehead will become the locus for many corporal marks in the later Babylonian, Persian, and Greco-Roman cultures.

to be formally articulated, scholars pause from erasing it completely from the list of potential candidates at this time as it does emerge as the most prevalent form of corporal marking in the later Neo-Babylonian (NB) and Persian periods.

The *abbuttu* was categorically implemented upon slaves in order to visually separate the “have’s” from the “have not’s” and regulate the nature of their social and private relationships with OB society. In a society where slaves were permitted to walk around freely, some engaging in commerce, it has been acknowledged by Victor Hurowitz in his research on slave markings in Akkadian sources that the primary function of the *abbuttu* was “as a mark of servitude or ownership.”¹⁸ As a Babylonian text accounts the procedure of acquiring a slave: “He (the master) has shaven him (the slave), [and] he has marked him with an *abbuttu*.”¹⁹ Thus, it may be argued that initially *every* slave was subject to marking as it served as an outward sign to the public of the marked individual’s status as a slave.

Over time, however, the use of the *abbuttu* became selective, reserved as a form of punishment for only those who were disobedient in some manner or were deemed to have the potential to be so. An interesting case example of this phenomenon relates to a situation of a female slave who had a baby on behalf of a barren wife and thereupon vied for her master’s affection. Appropriately dubbed “the Sarah and Hagar law,” Law 146 in Hammurabi’s Code states:

“If a man married a *naditu* woman and she gave her husband a
maidservant and she (the maidservant) bore sons, and afterwards that

18. Hurowitz, “His Master,” p. 63

19. Hurowitz, “His Master,” p. 62

maidservant equated herself with her mistress – since she bore children, her mistress shall not sell her for silver [but] she shall mark her with an *abbuttu* and number her among the female slaves.”²⁰

Prior to her assertions, the female slave remained unmarked. Only with her pretensions for higher social standing was she punished with an *abbuttu*, a degrading sign of her status.

Reflecting on this and other cases, Reuven Yaron in his updated commentary on the laws of Eshnunna infers that it may not have been even a legal obligation to mark one’s slave – even if a slave had transgressed in some way – as the *abbuttu* was an option offered to the slave’s owner.²¹ This option may explain why various modes of the *abbuttu* existed in the OB society. In a sense, they provided options (i.e. more responsive measures) of punishment to the owner of slaves when faced with particular situations. The type of *abbuttu* fitting for a slave inclined to run away, may not be fitting for one who vied for higher social standing. The type of *abbuttu* appropriate for a disobedient child, may not be similarly appropriate for a slave who is physically aggressive, and so on. Nevertheless, in the OB period, the *abbuttu* was clearly the mark-of-choice used by the free public to demarcate the particular status of slavery, punish a slave for disobedience, or warn others about a slave’s disposition towards insubordination.

20. Hurowitz, “His Master,” p. 59 . Furthermore, a *naditu* was a specific class of women in Babylonian society, most likely a priestess to a particular deity. As part of this status, they could not have children. Interestingly, Sarah’s name from the Biblical texts means “princess,” (i.e. a dignified role, such as a priestess) and Hagar’s name could be rendered as “the stranger” (i.e. the slave), providing more semblance between the two texts. It may be suggested that this was a common occurrence in the ancient Near East, and thus is testified to in both texts by happenstance. It could also be the case that either (a) one separate source text was utilized by both accounts, or (b) one account was borrowed from the other.

21. Hurowitz notes Yaron’s conclusion on page 56. Cited work: R. Yaron. *The Laws of Eshnunna*, 2nd revised edition (Jerusalem: Magnes, Leiden: E.J. Brill) 162-165.

As the OB period was coming to an end, the use of the *abbuttu* was gradually declining. In fact, documents dealing with the adoption and sale of slaves from the subsequent Middle (ca. 1365-940 B.C.E.) to Late Assyrian (ca. 940-637 B.C.E.) periods rarely mention slave marks. The few documents that reference corporal marks do so not as brands, tattoos, tags, or locks of hair, as could have been the case with *abbuttu*. But, in the Assyrian period, it is clear that the act of corporal marking was curtailed to the disfigurement of the ear(s).²²

Use of corporal slave mark emerged once again as the region entered the Neo-Babylonian period (ca. 612-539 B.C.E.) followed by the Persian period (ca. 539-331 B.C.E.). In this era of rebirth for Babylonian and later Persian culture, the *abbuttu* would be reborn along with a new mark called the *šindu*.²³ As attested to in a plethora texts, the *šindu* – coming from the verb *šamātu* meaning “to mark” or “to color” – would be the most prevalent

22. I chose the word “curtailed” specifically in order to acknowledge that the punishment of cutting off the ears for a disobedient slave is already mentioned previously in the Code of Hammurabi (CH 205 & 282). Therefore, while scholars interpret the extant materials to show that the corporal mark of the *abbuttu* declined, the mutilation of the ear appears to have continued. Mentioned twice in the Middle Assyrian Laws, 40 and 44, the ear of an insubordinate individual is to be mutilated as punishment. According to the summary of Law number 40 by Hurowitz, it “mandates cutting off the ear of a female slave who has veiled herself and has by doing so put on the garment befitting only free women, their daughters and their companions.” [Hurowitz, “His Master,” p. 64] Similar to the OB period, it appears the crime of pretentiousness by a subordinate in the Assyrian era was also severely dealt with, this time by the cutting off of the ears. Yet, the mutilation mandated by the Assyrian laws was not just confined to the cutting off the ears. It also permitted the piercing of them (*uznam pullušam*). From the Middle Assyrian Laws, Law 44, it states: “If an Assyrian man or an Assyrian woman dwell in a man’s house as a pledge equivalent to their own value...his master may smite him with a rod, pull out his hair, break or pierce his ears.” [Hurowitz, “His Master,” p.65] One may surmise that since the pledge of a free person into servitude was accompanied by a list of physically aggressive acts that would ultimately cause pain and disfigurement, the voluntary submission of one’s freedom was a highly stigmatized act in the Assyrian society. Furthermore, such a violent entrance onto this path may have functioned as a preventative message should one be motivated to solve economic misfortunes in this manner.

23. An example of a Neo-Babylonian document that mentions the *abbuttu* is CT [Cuneiform Texts from the Babylonian Tablets in the British Museum] 22 87:45-47 – “(On each), according to his own (slave) status, has been placed his *abbuttu*.” Translated by Muhammad Dandamaev, *Slavery in Babylonia*, p. 234. For *šindu*, see Mendelsohn, *Slavery*, p. 47, in Hurowitz, “His Master,” p. 61, and in Dandamaev, *Slavery in Babylonia*, p. 231

form of corporal mark in the NB and Persian periods.²⁴ Yet, a majority of the sources do not clarify whether the *šindu* was a brand or a tattoo.

Helpful in understanding the form of the *šindu* are several documents from the Yale Oriental Series (YOS).²⁵ These documents indentify the marking implement of the *šindu* as a *šindu parzilli*, an “iron stamp.”²⁶ Cautioning against jumping to the conclusion that this must mean the *šindu* was a brand, Dandamaev writes: “The same word usually designated all types of brands and/or marks used for slaves and livestock.”²⁷ Similar to a brand, tattoos are created through a metal instrument stamped into the skin.

Whether as a brand or a tattoo, the *šindu* was a mark of slavery applied to the face, to the hands, or to the wrist as a very visual sign of one’s status.²⁸ And, with each transfer of ownership a new name or symbol would be incised. From one of the Ur Excavation Texts, it states that a woman who had been a slave to two owners had “the right hand inscribed with the name of PN₁, and a second [mark] of a staff is inscribed with the name of PN₂.”²⁹ This is just one of many instances when a staff or scepter (*ḫuṭártu*) is indicated as the mark of a slave.³⁰ According to Dandamaev, this mark was most prevalent during the Achaemenid period (ca. 539-331 B.C.E.). The reason for this particular symbol is not

24. Fox translates as “to mark,” [Fox, “Body Markings.”], while Dandamaev translates it as “to color.” [*Slavery in Babylonia*, p. 231]. Hurowitz connects it with the use of the Aramaic word *šnita*, which is used, as will be discussed later in this chapter, to note slave marks in the Aramaic Papyri of the 5th century before the Common Era. [Hurowitz, “His Master,” p. 61]

25. YOS 6 11:14, 150:20, YOS 7 128:16-17

26. Dandamaev, *Slavery in Babylonia*, p. 233. The author of Jeremiah was aware of this tool, as he uses it metaphorically to incise the heart of Judah with the guilt of their transgressions. As it is written in the Book of Jeremiah 17:1, “The guilt of Judah is inscribed with an עט ברזל (*et barzel* - stylus of iron), engraved with an adamant point on the tablet of their hearts.”

27. *Ibid.*

28. “*panu*” – Hurowitz, “His Master,” p. 61. For information regarding the hand and wrist see Mendelsohn, *Slavery*, p. 46. These locales will continue to be the case through the Persian period. From the Persians the Greeks and subsequently the Romans would also place tattoos on the forehead and hands. See Mediterranean section below for further details.

29. The exact text comes from UET 4 29:3-4, translated by Dandamaev, *Slavery in Babylonia*, p. 234

30. Mendelsohn, *Slavery*, p. 47

known.³¹ What is known is that the *šindu* mark was typically a symbol.³² For example, there are accounts which testify that an ax, hatchet, or spade representing the Babylonian deity Marduk, and a stylus representing the Babylonian deity Nabu were used to mark slaves.³³ Thus, like the ax or stylus, the staff was a symbol readily identifiable to the majority of the public indicating the mark individual's status as a slave.

While the *šindu* mark of slavery was often a name or symbol of a master, whether divine or mortal, it was rarely a complete message. Nevertheless, a message is implemented on an insubordinate slave in a legal anecdote from the lexical series of *ana ittišu*.³⁴ Depending upon one's understanding of the source, the slave may have actually been punished three times: once with an *abbuttu* and sold, a second time bound and sold, and the third marked with "this one is a runaway, capture him!" on his face by a master.³⁵

The documents states:

He has shaven him

He has marked him with an *abbuttu*.

He has sold him for silver.

31. While we may be uninformed currently about the meaning of the scepter or staff, it is interesting to note that the *ḫuṭārtu* mark continues to retain significance even into the subsequent Seleucid period, as it is mentioned in documents from that time (ca. 312-60 B.C.E.). For specific references, see Dandamaev, *Slavery in Babylonia*, p. 234, footnote 218.

32. Mendelsohn, *Slavery*, pp. 46-47

33. Marduk is the Babylonian name of a late-generation god from Mesopotamia and the patron deity over the city of Babylon. When Babylon permanently became the political center of the Euphrates valley in the time of Hammurabi, Marduk slowly began ascending to the head position within the Babylonian pantheon. Nabu is the Babylonian god of wisdom and writing, worshipped by Babylonians as the son of Marduk. Dandamaev notes that particular examples come from BE (Babylonian Expedition of the University of Pennsylvania, Series A: Cuneiform Texts) 8 106:9. Dandamaev, *Slavery in Babylonia*, p. 488

34. Tablet II, Column 14, lines 3-14. Hurowitz, "His Master," p. 62

35. An interesting parallel to this tattoo comes from the ancient Roman commentator on the orator Aeschines, who wrote that runaway slaves were often inscribed a *stigma* [a tattoo] on the forehead with the words, "Stop me, I'm a runaway." [Scholiast to Aeschines, 2, 79 (Mervin R. Dilts, Scholia in Aeschinem (Stuttgart, Leipzig, 1992), p. 75, no 170a)]

He has not [complied] with his master.

He has fled from his master's house.

After [he fled], he returned him,

(and) placed a fetter on his foot.

He made him a chain.

He made him pass by/over the *bukannu* (=he sold him)

“This one is a runaway, capture him!” he incised on his face.³⁶

In addition to confirming that a *šindu* could be applied to the face, most likely the forehead, “this passage [also] teaches us that a *šindu* not only identified a man as a slave, but certain kinds [of marks] could prevent his running away as well.”³⁷ In other words, the *šindu* served both as a general mark of the status of slavery in the NB period, and specifically as a punishment for slaves who were disobedient, testifying to the public that the marked individual was precarious property. Fittingly Hurowitz writes, “we also learn [from the document above] that a slave is marked by a *šindu* when an *abbuttu* does not suffice to prevent his running away.”³⁸ Like the OB period, different types of corporal marks co-existed in the latter culture, providing more responsive measures of punishment for different situations. From the case presented above, the *šindu* was likely considered more enduring and effective form of punishment than the potentially temporary corporal mark of the *abbuttu*.

36. Hurowitz, “His Master,” p. 62

37. *Ibid.* p. 63

38. *Ibid.* p. 63 It is also important to note that this view has a parallel in rabbinic literature, as *Tosefta Makkot* 4:15 prescribes, “It is permissible to mark a slave in order that he should not run away.” While exact dating is difficult to ascertain from this statement, many scholars do concur that the *Tosefta*, a comparison piece to the *Mishnah*, was most likely compiled around 200 C.E.

Along with demarcating ownership of property as well as punishment, the *šindu* could also indicate a slave's unique role or occupation in Babylonian society. Outside the private sphere, the NB culture had a large market for temple slaves, known as *shirkûtu*. As a rule, temple slaves received the mark of a star, called *kakkabu* in Akkadian, to indicate their unique service.³⁹ In a tragic story about the *shirkûtu* of the goddess Ishtar, found in the YOS, a mother makes the heart-wrenching decision to give her children over to the care of the temple as slaves rather than allowing them to remain with her and potentially starve to death. As it is stated in the text:

“Bânât-Innin, the daughter of Nergal-iddin, in the assembly...spoke as follows: ‘Nabû-zêr-ukîn, my husband, has gone to his fate. Famine is established in the land and Shamash-êriba and Shamash-li’û, infant sons, I have marked with a star and given to the Bêlit of Erech (Lady of Erech = goddess Ishtar).’”⁴⁰

It is clear that this transfer of property was a public event and the act of marking the body with a *šindu* symbolized the complete transfer of ownership. What remains merely speculative is whether the act was additionally commenced within the context of a religious consecration. Similar to what Hannah undergoes through the dedication of her infant son Samuel, possibly this mother may have been bestowed with divine merit as a result of her decision.⁴¹

The *šindu* mark of a *kakkabu* which marked an individual as property of the temple and indicated their unique service to the deity was made specifically upon the hand.

39. Muhammad Dandamaev identifies the name of the star mark as *kakkabtum*. p. 488

40. YOS, Vol. VI. Indicated as number 154, the piece was first translated by Dougherty in *Records from Erech, Time of Nabonidus* and then included in his work, Dougherty, *The Shirkûtu*, p. 33.

41. I Samuel 1:24-28

According to one document, a master marked the star upon the hand of a slave only to die before the transfer to the temple could be completed. As it is written:

“Nubtâ, a female slave of Nâdina-aḥu...spoke as follows: ‘Nâdina-aḥu, my master, he marked me with a star [and] dedicated me to the Bêlit of Erech. Fate removed Nâdina-aḥu, my master, and Shamash-zêr-ushabshi, the brother of Nâdina-aḥu, who took possession after Nâdina-aḥu ...and to Innina of Erech (a.k.a. Ishtar), did not give me... [The chief officers] of Eanna (the temple) saw the star which was upon her hand [and declared:] ‘As long as Shamash-zêr-ushabshi lives, she shall revere (serve) him...After Shamash-zêr-ushabshi has gone to his fate, she shall belong to Bêlit of Erech as a [female *širku*].’”⁴²

This text reaffirms the fact that the *šindu* was regarded within Mesopotamia during the NB period as a sign of dedicated service to a temple deity. Even more, we learn that the mark of fidelity to this service was made upon the hand specifically to ensure an additional measure of visibility. As it is stated in the text, “[The chief officers] of Eanna saw the star which was upon her hand [and declared:] ‘...she shall belong to Bêlit of Erech as a [female *širku*].’”

Occasionally, though, the *šindu* mark of the star on the hand was accompanied by an additional mark: the *arru*.⁴³ For example, in a document concerning the attempt of temple officials to hold a particular man for service as a *širku*, because his lineage (a grandmother was a *širku*), a witness is called forth who testifies: “The star (*kakkabti*) and the *arra’atum* upon the hand of Ḥarshinana (his grandmother), a female slave of Nâdina-aḥu,

42. YOS 7 66:1-21. Dougherty, *The Shirkûtu*, p.35

43. *Arru* = singular, *arratu* = plural

my uncle...I did not see.”⁴⁴ From similar surviving texts which mention *arru* and *šindu* together, scholars are able to distinguish that the *šindu* of the NB period was in fact a tattoo, while the *arru* was a brand.

According to Raymond Daugherty, who researched the accounts of the *shirkûtu* of Babylonian deities within the Yale Oriental Series, the *arru* is definitively a brand. Daugherty writes, “*Ar-ra-a-tum(ti)* may be explained as the feminine plural of a noun from *araru* – ‘to burn.’ If [this] is its etymology, it means ‘burnings,’ [that is to say] ‘brandings.’”⁴⁵ Daugherty’s position is supported, once again, by a YOS text which provides an account of the legal transfer of two daughters to two women. The document reads as followed:

“[With reference to] Ḫanna’, a consecrated one of the Bêlit of Erech, of the star mark (*kakkabti šeendi*)...the hand [mark] of Ina-Nana-ultara...and Ina-qat-Nana-saken, her daughters,...as to the writing (*šaṭari*) of the hand [mark] of her daughters, of one to Bu’iti and the other to Li’udu-Nanâ, the writing (*ša-aṭra*) saw.”⁴⁶

Because of its condition, this document is harder to read than some of others. Nevertheless, with the use of *šaṭari* and *ša-aṭra* in the text above, we learn that the form of the *šindu* mark of a star (*kakkabti šeendi*) was commenced by an act of incised writing, not branding. As Daugherty explains, “the mark upon a slave’s or devotee’s hand could

44. Dougherty, *The Shirkûtu*, p. 37

45. *Ibid.* p. 82. Mendelsohn concurs, writing, “The star (*kakkabu*) was often accompanied by an additional marked referred to as *arratu* ‘branding.’” [Mendelsohn, *Slavery*, p. 48] Dandamaev, on the other hand, states that it is a tattoo. He writes, “Sometimes a mark called *arru* (plural *arratu*) was tattooed on the wrist or hands of slaves belonging to the Eanna temple in addition to the [šindu of the] star.” However, it does not appear from the source that will follow that he was correct. [Dandamaev, *Slavery in Babylonia*, p. 488]

46. Dougherty, *The Shirkûtu*, p. 43

be expressed by the verb *šaṭâru*, [from which the words *šaṭari* and *ša-aṭra* derive], meaning ‘to write.’”⁴⁷ His claim is supported by the Hebrew cognate, ש.ט.ר. (shatar), which means “to cut,” or “to [en]grave with a stylus.”⁴⁸ With this evidence, it should be understood that the *šindu* is a mark implemented by writing and engraving with a metal instrument called a *šindu parzilli* that indelibly stamped the skin.⁴⁹ In other words, the *šindu* slave mark was a tattoo, while the other mark – *arru* – was a brand.

Although it is not certain in the earlier periods of Mesopotamia, it does become evident in the later Neo-Babylonian and Persian periods that multiple corporal marks were in use at the same time, including that tattoo in Mesopotamia. It will be important to remember when we examine the Biblical passages of corporal marks later in this chapter that tattoos in Mesopotamian cultures were primarily implemented upon the forehead or hand.⁵⁰ Also of importance is the function the tattoo held in the society as a demarcation of the status of slavery, as punishment for a slave who was insubordinate, as a warning to others that the marked individual was precarious property, as well as a cultic indicator that an individual was bound in service to a particular deity.⁵¹

47. Dougherty, *The Shirkûtu*, p. 82

48. *Ibid.*, footnote 95. Although I could not validate this claim, there is a similar root “ש.ט.ר,” found in the Biblical scriptures of Leviticus 19:28, 21:5, Zechariah 12:3. In all these cases it means “to cut,” “incise,” or to “scratch.”

49. While unlikely, due to a lack of evidence, it still may be a remote possibility that the *šindu* was made through the act of scarification. That is to say, similar to tattooing the ‘brand’ as understood by the Babylonians may have been commenced through an act of incising with a cutting instrument, yet without the insertion of some colored matter.

50. This is very significant as an account from the Book of Isaiah will encourage ancient Israelites to “write” on their hand the name of the Lord as an act of allegiance to and potentially possession of the God of Israel. Please refer to the last section of this chapter for a detailed analysis of Isaiah 44:5. Likewise, we will see in Ezekiel 9:4 that corporal marks of the Bible were also placed upon the forehead.

51. Similar to their allegiance of temple slaves in Mesopotamia, Isaiah prophesizes that Israelites will too mark their hand as “belong to the LORD.” Also, God employs the corporal mark in Genesis 4:15, with the situation of Cain, as either a punishment or as a warning to others about his precarious nature.

Ancient Egypt:

Textual evidence of tattooing in ancient Egypt is not explicit. Unlike Mesopotamia, there are very few written records testifying to body marking, especially from the pre-Persian periods of ancient Egypt. Although textual support for explicit tattooing is lacking, Egypt offers irrefutable proof of its practice in the form of mummies, whose preserved bodies still testify to the inlaying of color beneath the skin as to ensure the mark's endurance in this and the next life. That it not to say the only benefit of the mummies is to speak definitively to the existence of the practice. They also serve to clarify and corroborate the other extant pieces of evidence of tattooing from the region, such as figurines and other artistic renderings, which would have been only suggestive of its use as marks of sensuality, fertility, faith, and status. The following section will examine the evidence of tattooing from Egypt, spanning an expansive period of time from the beginning of the Predynastic period (ca. 5500 B.C.E.) to the end of the Ptolemaic period (ca. 30 B.C.E.).⁵²

The first piece of evidence from Egypt comes from the Predynastic period (ca. 5500-3000 B.C.E.). During this period of Egyptian history, there emerged a complex belief about the afterlife.⁵³ Consequently, the dead began to be buried in tombs with provisional items such as food and ceremonial objects for the journey to existence in the hereafter. Commonly found among these Predynastic tombs were figurines, male and female, in a

52. All dates in this section are according to Jack M. Sasson's chronology in *Civilizations of the Ancient Near East*, Vol. II. (London: Simon & Schuster and Prentice Hall International, 1995) p. 660.

53. This understanding comes from an interpretation of burial evidence: emergence of the coffin, first attempts to wrap the body, deposit of burial goods, etc. Even as burial practices evolved, no preserved skin will be presented from this period as embalming was not fully developed until Dynasty IV (ca. 2600 B.C.E.). [Bianchi, Robert S. "Tattoo in Ancient Egypt" in *Marks of Civilization*. A. Rubin, ed. (Los Angeles: Museum of Cultural History, University of California, 1988) p. 21]

variety of media.⁵⁴ Some of the female figurines were decorated with an assortment of designs: stripes, geometric shapes, and animals. From the marks on the figurines, Fox suggests that tattoo's earliest presence in Egypt is around 3800 B.C.E.⁵⁵ It is important to note that such decorations were found only on the female figures as the evidence from later periods of Egyptian history will demonstrate a strong correlation between the practice of tattooing and females.

From the Predynastic period through the collapse of the Old Kingdom, no convincing evidence of tattooing in Egypt can be put forward. The only exception is an instrument discovered by Matthew Flinders Petrie, which potentially served as an implement for tattooing. From a First Dynasty (ca. 3000-2890 B.C.E.) tomb at Abydos, a small sharpened flint rock was found attached to a wooden handle.⁵⁶ Petrie, remarking on the find, wrote: "The flint set in wood did not seem capable of bearing any strain (for use as a weapon), but [is] explained...as a tatuing instrument of the usual form. As tatuing was used in prehistoric times...there is nothing surprising in finding such a tool."⁵⁷

But how prevalent was the use of such instruments in ancient Egypt? Substantial evidence of tattooing up until this point in Egyptian history is lacking. It may be inferred from this dearth of evidence that Egypt's evolution as a tattooing culture was a late development. In fact, research suggests that the practice was likely not native to Egypt but introduced into its culture by Nubians, whose society flourished slightly before,

54. *Ibid.*

55. Fox, "Body Marking," and supported by L. Keimer, *Remarques sur le Tatouage dans l'Egypte Ancienne*. (Cairo: Imprimerie de l'Institut François d'Archeologie Orientale, 1948) fig. 3. While Fox postulate that these markings could have been tattoos, Bianchi notes other scholars who both concur and reject this hypothesis, proposing that such decorations were either clothing, body paint or a combination thereof. See list of scholars in Bianchi, "Tattoo in Ancient Egypt," p. 21

56. W.M. Flinders Petrie. *The Royal Tombs of the First Dynasty* (London: Egypt Exploration Fund, 1901) pl. 6:15

57. *Ibid.*, p. 24

during and after the time of Egypt's Middle Kingdom (MK), ca. 1980-1630 B.C.E.⁵⁸ This theory received its most significant support when excavations, conducted by C.M. Firth in 1910, uncovered fragments of a female Nubian mummy, dateable to 2000 B.C.E., with groupings of dots and dashes tattooed upon the skin.⁵⁹ More recent excavations at the Nubian site of Aksha only confirm this find as a number of mummies, both adolescent and adult women, were decorated with blue and black tattoos, precisely in the same configuration as those on the one found by Firth.⁶⁰ These tattoos mirror the ones later discovered on Egyptian mummies from the MK period, supporting the hypothesis that tattooing was introduced to Egypt by the Nubians.

In addition to similar designs, the tattoos that would take hold in Egypt from Nubia during the MK period were exclusively applied to women. In 1891, an archeologist working in the funeral chamber of Mentuhotep discovered the mummy of Amunet, a priestess of the Egyptian deity Hathor at Thebes from Dynasty XI (ca. 2081-1938 B.C.E.). Bearing the epithet, "King's Favorite," she had a series of dots and dashes – similar to those found on the Nubian mummies – tattooed indiscriminately on her arms, her legs (specifically on her thighs), and her lower abdomen.⁶¹ Robert Bianchi, who studied tattooing in ancient Egypt, observed: "Her tattoos comprise a series of abstract patterns of individual dots and dashes randomly placed upon the body with apparent disregard for formal zoning."⁶² An exception to his observation comes from the area of

58. Bianchi, "Tattoo in Ancient Egypt," p. 23. Nubia was the neighboring society to ancient Egypt and the particular Nubian group of interest is the "C-Group."

59. *Ibid.* Discovered in the Nubian village of Kubban.

60. *Ibid.*

61. Tom Jennings. "In Search of History: Art of Tattooing," Diana Friedberg, ed. (History Channel: A & E Television Networks, 1998)., Bianchi, "Tattoo in Ancient Egypt," pp. 21-23 (fig. 3), and Fox, "Body Marking."

62. Bianchi, "Tattoo in Ancient Egypt," p. 22

her lower abdomen, where there is an elliptical pattern of dots and dashes tattooed just below the naval.

Two other mummies, dated around the same period as Amunet and discovered at Deir el-Bahri, also display marks with remarkable semblance to the Nubian tattoos. Identified as dancers, these women had dots tattooed on their arms and chest incised into the shape of diamonds. In addition, one of the female dancers displays, just above the pubic region, another form of corporal mark. According to the sources, this mark does not appear to involve the inlaying of color, nor is it a medical incision “made by knife or cautery, [as it] does not invade the muscle of the abdominal wall.”⁶³ Evidently, the corporal mark in questions is a cicatrix, a result of scarification.

Figurines similar to the ones of the Predynastic period were also unearthed from the MK period. Their markings echo those found on the mummies identified above. An interesting group of these MK figurines have come to be known by scholars and Egyptologists as either “Brides of the Dead,” or “Companions of the Dead.”⁶⁴ Donned with a distinctive wig associated with the Egyptian deity Hathor, a naked female figurine from amongst this group has a series of dots marked on her frame.⁶⁵ Many of the dots form diamond shaped patterns. Yet, just over the pubic area, there is a horizontal line of black dots which bears a striking resemblance to the mark identified on the mummies from the MK.

63. *Ibid.*

64. While Jennings, “In Search of History,” 1998 and Bianchi, “Tattoo in Ancient Egypt,” p. 22 designate the figurines as “Brides of the Dead,” Fox chooses a more generic term: “Companions of the Dead.” [Fox, “Body Marking.”]

65. Bianchi, “Tattoo in Ancient Egypt,” p. 23

Without the wealth of extant written accounts, scholars are unable to determine the exact function these tattoos held within Egyptian culture. One possibility is that the Egyptian tattoo promoted the basic human drive of reproduction/fertility. In fact, due to the locale of certain marks, such as those located on the thigh as well as the ones discovered near the pubic region, the marks on the MK mummies have been identified as sexual.⁶⁶ Recent scholars, however, qualify this interpretation with cultic overtones. Bianchi writes, “The eroticism which is undoubtedly associated with the Egyptian tattoo of the Middle Kingdom correlates, as far as the faience figurines are concerned, with a prevailing religious attitude that linked physical procreative drives with the loftier aspirations of a resurrection in the hereafter.”⁶⁷ Another way of stating this is that Egyptians believed that resurrection would be fulfilled through sexual stimulation, initiated by these female companions. This theory is certainly supported by the archeological remains as tattoos were exclusively employed upon females, whose role was confined to areas of “entertainment” and cultic practice.⁶⁸ Moreover, the preponderance of the evidence connects both these roles to the Egyptian deity Hathor, who served in the Egyptian pantheon as the goddess of the love. Thus, the tattoo of the MK period in Egypt was clearly imbued with both sexual impulses as well as cultic beliefs about the afterlife.

66. B. Bruyere. *Rapport sur les fouilles de Deir el-Medineh (1934-1935) III: Le villiage, les decharges publiques, la station de repos du col de la Vallee des Rois*. (Cairo: 1939) p. 109; Omlin, J.A. *Der Papyrus 55001 und seine satirisch-erotischen Zeichnungen und Inschriften* (Turin: 1973) p. 22; and Desroches-Noblecourt C. “ ‘Concubines du mort’ et meres de famille au Moyen Empire” in *Bulletin de l’Institute Francais d’Archeologie Orientale du Caire*. (1953) p. 43 as noted in Bianchi, “Tattoo in Ancient Egypt,” p. 23

67. Bianchi, “Tattoo in Ancient Egypt,” p. 23

68. Fox remarks how some scholars further attempt to show the exclusivity of the tattoo, determining was slated for only women of lower class. Fox then refutes this assumption, stating, “...depictions of royal women always pictured them clothed. The fact that the tattooed mummies were discovered in association with royal and elite tombs, like the priestess Amunet who was buried within the temple precinct, would indicate rather that these women did not hold lowly roles.” [Fox, “Bodily Markings.”]

The geometric tattoos, used upon females, continue to be present in the New Kingdom (NK) period (ca. 1539-1075 B.C.E.). But, a shift has occurred as tattoos of the god Bes begin to be discovered in the evidence from the period. One piece of evidence related specifically to this change in the tattoo is on a faience bowl, decorated with a female musician who has the deity Bes in silhouette style on her thigh.⁶⁹ A second is located in a fresco from Deir el-Medineh that illustrates another musician, this time a lute player, with the Bes image also on her thigh.⁷⁰ Additionally, two other images of the deity Bes appear as incised decorations on the thighs of naked female figurines, made of bronze, which served as handles for mirrors.⁷¹ Given the close relationship between tattooing in Egypt and the tattoo-culture of Nubia, it is not surprising that archeologists discovered a Nubian female mummy that has, in dot-dash fashion, an abstract image of Bes tattooed on her torso.⁷² This evidence seems to corroborate the theory that Egyptian tattoos originated in Nubia; it also confirms that the images of Bes discovered in the artistic renderings from Egypt were in fact tattoos.

As Bes held multi-dimensional role in the Egyptian pantheon, the function of the Bes tattoo in the NK period similarly may have varied.⁷³ The strong sexual impulse associated with the MK tattoos continues in the NK period as Bes was connected to the muse of music and eroticism. As Bianchi puts it, “He (Bes) was the tutelary deity of revelry and

69. *Ibid.*

70. Bianchi, “Tattoo in Ancient Egypt,” p. 25, fig. 9

71. *Ibid.*

72. The mummy was discovered at Aksha and dated to the fourth century before the Common Era. [Bianchi, “Tattoo in Ancient Egypt,” p.25]

73. There is insufficient evidence to conclusively state from where Bes originates. Some believe Bes to derive from a leonine god present as early as the Predynastic period of Egypt. (Bianchi, “Tattoo in Ancient Egypt,” p. 24) Others contend that he was adopted by Egypt sometime during the Middle Kingdom from some other group on the African continent, potentially Nubia.

unbridled cavorting.”⁷⁴ Accordingly, this may have been the motivation to tattoo Bes on the thighs of women, particularly if they were on the inside of the thigh, as this is close to the pubic region. Interestingly, the locale of the thigh may indicate another function of the NK tattoo: divine protection. As Bes was believed to be the deity of protection his image was affixed to things related to the household to insure the safety of its members.⁷⁵ Particularly, the tattoo was applied to the thighs of women of the house in order to appeal to Bes to protect them during the fragile stages of childbirth and imbue the mother-to-be with strength. Thus, from the extant sources, the NK tattoo was used primarily on women to infuse the mortal being with divine qualities of protection and/or sensuality.⁷⁶

While the primary purpose of the tattoo in the NK period was a mark of protection and sensuality, one piece of evidence from the period depicts tattooing as a conscripted act for prisoners-of-war. A relief in Medinet Habu, a temple complex of Ramses III, illustrates the process of marking Sea People prisoners. According to Fox’s eye-witness account of the relief, “Egyptian scribes with stylus type instruments write on the captives’ shoulders. Importantly,” Fox comments, “the instruments and process resemble more

74. Bianchi, “Tattoo in Ancient Egypt,” p. 25

75. Furniture, mirrors, cosmetic containers, as well as knives have been found with the image of Bes upon them.
www.ancientegyptonline.co.uk/bes

76. As will be demonstrated in the Ptolemaic period in Egypt, marking the name of the god or even the image of the god on the body may have been developed as a way to embody the individual with the powers of the deity within a particular religious context. Amazingly, in the *Mishnah*, Rabbi Shimon ben Yehudah says in the name of Rabbi Shimon: “He is not culpable [for transgressing the Biblical prohibition of tattooing found in Lev. 19:28] unless he writes there the Name of God.” [Babylonian Talmud, *Makkot*, 21a] As will be discussed later in the thesis, it may be likely that this Egyptian function of the tattoo was later known by the rabbinic sages and used as one possible explanation for the Jewish prohibition on tattooing, as to not impersonate God or mirror these non-Israelite practices. Furthermore, although Egyptians primarily tattooed women, Libyans males were tattooed as indicated in a painting in the tomb of Seti I (ca. 1300 B.C.E.) which depicts the four races in the Egyptian world view: Egyptians, Asiatics, Nubians, and Libyans. Upon the male Libyans, there are marks that are unmistakably tattoos, one being the deity Neith. [Fox, “Body Marking.”]

closely tattooing than branding.”⁷⁷ As the process of marking slaves was common in Mesopotamia, it may be likely that a similar practice to a lesser extent was employed by Egyptians in the NK period when enslaving their conquered enemies.⁷⁸

Although speculative for the NK period, tattooing of slaves indeed emerged in Egyptian culture with the establishment of the 27th Dynasty, the first in the Persian period of Egypt (ca. 525-404 B.C.E.). The most intriguing examples of the functional change of the tattoo were found in the earliest extra-Biblical records of Judeans *creating* bodily marks.⁷⁹ These body marks, however, vary from those discovered in the previous eras of Egyptian history. In fact, in both their form and function they resemble the tattoos of Mesopotamia, particularly the later cultures of Neo-Babylonia and Persia. Therefore, it is my belief that either (a) as Persian culture entered Egyptian life, so entered their form of tattoo, or (b) these Judeans having previously encountered Neo-Babylonian and Persian culture brought this form of tattoo with them.⁸⁰ Presented below are the accounts of this new tattoo in the Egyptian region, preserved in the written sources of the Judean communities in Egypt during the Persian period.

77. Fox, “Body Marking.”

78. The common practice of marking prisoners of war was not by incising and then inserting ink, but was made by branding the name of an Egyptian deity or the name of the Pharaoh upon the skin, as is testified to in the writings on the first pylon of the Medinet Habu Temple. Recounting the aftermath of the war with the Hittites, Ramses accounts, “I have branded the people of the Nine Bows and the whole land with thy name, they belong to the ka, forever, for thou art creator of them.”[James H. Breasted. *Ancient Records of Egypt*, Vol. 3 (Urbana and Chicago: University of Illinois Press, 2001) p. 182, number 414. It is also understood that Ramses III branded captured Libyans with his own name. [Fox, “Body Marking.”]

79. To date, these are the earliest “Jewish” Diaspora texts in existence.

80. An example of Persian culture influencing Egyptian life is exhibited in sculptures. Many depict Egyptians dressed in Persian clothing. A perfect example of this is a sculpture of an Egyptian Overseer of the Treasury, named Ptahhotep, who was sculpted wearing a Persian costume. The sculpture is dated to early in Dynasty 27. [Edward Bleiberg. *Jewish Life in Ancient Egypt: A Family Archive from the Nile Valley* (New York: Brooklyn Museum of Art, 2002) p. 12, fig. 3]

Late in the 5th century B.C.E. Judeans were actively involved in tattooing their slaves. This group of Judeans most likely arrived in Egypt just prior to the Babylonian destruction of Jerusalem in 586 B.C.E. They were not the intellectual and economic elite taken into Babylon, as attested in the Biblical account.⁸¹ Rather, these Judeans were mostly common people and soldiers who, out of necessity to establish a new life, formed enclaves of mercenary groups to protect Egypt's borders.⁸² One such group of Judeans settled in Elephantine Island, adjacent to the Nubian border.⁸³ From this community an Aramaic papyrus, dated 12 June 427 B.C.E., testifies to the act of marking slaves:⁸⁴

At that time, Meshullam son of Zakkur, a Jew of Elephantine the fortress and of the military unit of Iddinnabu, said to the lady Tamut, by name, upon whose hand is marked 'Belonging to Meshullam': I have thought of you in my lifetime. I have released you [effective] at my death, and I have released Yehoishema, by name, your daughter, whom you bore to me [as a matter of law]. My son or daughter, my brother or sister, near or far, partner-in-chattel or partner-in-land, shall not have power over you or Yehoishema, your daughter, whom you bore to me [as a matter of law. No

81. II Kings 24:14-16 – "He exiled all of Jerusalem: all the commanders and all the warriors -- ten thousand exiles -- as well as all the craftsmen and smiths; only the poorest people in the land were left. He deported Jehoiachin to Babylon; and the king's wives and officers and the notables of the land were brought as exiles from Jerusalem to Babylon. All the able men, to the number of seven thousand -- all of them warriors, trained for battle -- and a thousand craftsmen and smiths were brought to Babylon as exiles by the king of Babylon."

82. Bleiberg, *Jewish Life*, p. 10

83. Cowley, through his reading of the many Aramaic papyri that will be presented, identifies this group particularly by the name 'Jews,' for they called themselves "יהודיא" (the Jews), and labeled their community, "חילא יהודיא" (the Jewish Force). [A. Cowley. *Aramaic Papyri of the Fifth Century B.C.* (Oxford: Clarendon Press, 1923) p. xv.]

84. Aramaic was the language of commerce and diplomacy for the ANE before Greek. The earliest proof of the use of Aramaic comes from the seventh century B.C.E. on the edges of cuneiform tablets. But evidence exist of its continued use through approximately 300 B.C.E. in Egypt (when the Ptolemaic period begins), and farther East it continues much later. Egypt appears to have an abundance of this evidence, because of environmentally favorable conditions. [*Ibid.*]

one] shall have power over you to mark you and to sell you for payment of silver. If anyone should rise up against you and against Yehoishema, your daughter, whom you bore to me [as a matter of law], he shall give you a fine of silver, 50 karsh by the stone weight of the king. You are released from the shade to the sun, and also Yehoishema, your daughter. And another man shall have no power over you and Yehoishema, your daughter, but you are freed to God.”⁸⁵

As was the case in the Mesopotamian region, a conspicuous mark was used to indicate the status of slavery in the later periods in Egypt. Significantly, there is no mention of removal of the mark through this or subsequent documents dealing with the manumission of slaves. The absence of such a critical element of manumission may support the argument that the mark of slavery was indeed indelible, possibly a tattoo, as it was not and possibly could not be removed. Furthermore, if this assertion is correct, it would also strengthen the argument that tattoos were the mark-of-choice that masters used on their slaves in the later periods of Mesopotamia as well.

A confirmation to this assertion that the mark of slavery in the Persian period of Egypt history was a tattoo is found in another Aramaic papyrus from the region. Discovered in Aswan and dated to 411 B.C.E., the papyrus preserves an account of the assignment of slaves (a mother and her three sons, one of whom is too young to be separated from her) to two sons, Mahseiah and Yedoniah, after the death of their mother, Mibtachiah. The document reads as follows:

85. Translation comes from Bleiberg, *Jewish Life*, p. 28

Said Mahseiah bar Natan [to] Yedoniah bar Natan, in [the presence of] all Aramaeans of Syene, of the detachment of Warizath, as follows:⁸⁶ We have agreed together and have divided between us the slaves of Mibtachiah our mother, and note, this is the share which comes to you as our share. You, Yedoniah, [receive] Petosiri by name, whose mother is Tabo, a slave. A *yod* is שניית (*šnita*-marked) on his arm at the right of a שניחת (*šnitat*-marking) in the Aramaic language, [indicating] “Mibtachiah’s.” Note also, this is the share which comes to me as a share. I, Mahseiah, [receive] Belo by name, whose mother is Tabo, a slave. A *yod* is שניית (*šnita*-marked) on his arm at the right of a שניחת (*šnitat*-marking) in the Aramaic language, [indicating] “Mibtachiah’s.”⁸⁷

As was the case with the previous papyrus, this example captures the act of Jews marking their slaves. And, through careful analysis, it also reveals that the form of the corporal mark – presented ambiguously in both papyri – was a tattoo. While this text is unbelievably well preserved, the meaning of the mark is not. This is principally on account of the rarity of the word שניחת (*šnitat*). According to A. Cowley, whose thorough study provided the translation, “The meaning ‘marked’ is required by the content, though the root (ש.נ.ח) is not found elsewhere.”⁸⁸ However, a rather obscure word using the same

86. “Other western Asiatics were settled in Syene under the general name Aramaean. But, ‘Aramaean’ might also include Jews, so that we sometimes find a man described in one place (correctly) as a Jew of Elephantine, and in another (more loosely) as an Aramaean of Syene when he had in some way become connected with that station.” [Cowley, *Aramaic Papyri*, p. xv] A wonderful example of this in the Biblical texts comes from the Book of Deuteronomy 26:5. God instructs the Israelites to say, “My father was a fugitive Aramean. He went down to Egypt, with meager numbers and sojourned there; but there he became a great and very populous nation.”

87. Cowley, *Aramaic Papyri*, p. 104, no. 28. I have made slight alterations such as the addition of the Hebrew and transliteration as to make the subsequent arguments dealing with the text clear to the reader.

88. *Ibid.* p.106

root does appear in Hebrew: שנתות (*šnatot*), a term for the measuring marks made on a vessel.⁸⁹ Thus, the meaning “marked” may be correctly posited by Cowley.

While Cowley’s analysis identified the mark as corporal (and most likely permanent), he does not prove conclusively that it was a tattoo. That argument is made through a comparison of *šnita* with its Assyrian cognate *šindu*, sometimes written as *šintu*. As was explained in the aforementioned Mesopotamian section, *šindu* or *šintu*, was a tattooed mark of slavery, coming from the verb *šamātu* meaning “to mark” or “to color.”⁹⁰ In fact, Hurowitz affirms this connection, writing: “This term, [*šintu*], appears as a loan word in Aramaic in the legal papyri from Elephantine in the form *šnita*.”⁹¹ Thus, under this large cross-cultural umbrella of Persian influence, the papyrus above is more precisely rendered:

You, Yedoniah, [receive] Petosiri by name, whose mother is Tabo, a slave.

A *yod* is tattooed on his arm at the right of a[nother] tattoo in the Aramaic language, [indicating] “Mibtachiah’s.” Note also, this is the share which comes to me as a share. I, Mahseiah, [receive] Belo by name, whose mother is Tabo, a slave. A *yod* is tattooed on his arm at the right of a[nother] tattoo in the Aramaic language, [indicating] “Mibtachiah’s.”

Clearly the tattoo functioned as a mark of slavery. But what then was the significance of tattooing a *yod*? Both Stenning and Guillaume understood the added mark of the *yod* to the existing name of Mibtachiah to mean “(belonging to) the *heir* of Mibtachiah,” based

89. *Ibid.* Cowley explains that the word ‘שנתות’ is utilized in this way because these measuring marks are typically understood as tooth-like marks, thus deriving from the Hebrew word for tooth (שן).

90. Fox translates as “to mark,” [Fox, “Body Markings.”], while Dandamaev translates it as “to color.” [*Slavery in Babylonia*, p.231].

91. Hurowitz, “His Master,” p.61

upon the theory that the *yod* was an abbreviation of the Hebrew word ירת (*yareit*), meaning “heir.”⁹² This, after all, coincides nicely with the previous papyrus of emancipation, which indicated that the mark of slavery was a sign of ownership: “Belonging to Meshullam.” This position also fits with the presentation of tattooing in the Mesopotamian region, which acknowledged that additional marks would be implemented upon the hands of slaves with each transfer of ownership.⁹³ Thus, the additional mark of the *yod* could qualify the already existing notion that the tattoo on the hand functioned as a mark of ownership.

Although *Yisrael* and Yedoniah are easily discounted as alternative possibilities for the abbreviation of the *yod*, I postulate two other highly feasible options which indicate additional functions of the tattoo: marks of allegiance and rites of passage.⁹⁴ The first comes from a theory that the *yod* is an abbreviation for the Name of the Hebrew God. Albeit, the extant sources indicate the Divine name was not written as it is today, “יהוה,” still it began with a *yod*, appearing as “יהו” and even earlier “י.”⁹⁵ As has already been pointed out, tattooing the name or symbol of a deity was a prevalent practice in both

92. Acknowledged in Cowley, *Aramaic Papyri*, pp. 105-106

93. As we recall, one document nicely illustrated that additional marks would be added with the transfer of a slave to a new owner: “The right hand is inscribed with the name of PN1, and a second [mark] of a staff is inscribed with the name of PN2.” [The exact text comes from UET 4 29:3-4, translated by Dandamaev, *Slavery in Babylonia*, p. 234]

94. *Yisrael* is not in contention, for it is not found anywhere in the Elephantine Papyri. Also, the name Yedoniah is excluded as a viable option, for had the *yod* been an abbreviation for his name, it would not have been also placed on the slaves of his brother, Mahseiah.

95. Cowley argues that the level of religious observance by these Jewish colonialists stood on par with their ancestors. In his words, “The colonists were not much better than their fathers – nor perhaps much worse.” They devoted themselves to a national deity יהו as is found in the Elephantine Papyri (no. 13, 22, 25, 30, & 32), but such texts also mention their familiarity with other deities. For a full discussion refer to Cowley, *Aramaic Papyri*, p. xviii

earlier Egyptian periods and in Mesopotamian culture.⁹⁶ It is likely that a similar practice was incorporated into the culture of this community of Jews as a way for an outsider to demonstrate his/her allegiance to the community's national deity. This very practice was pronounced by Second Isaiah to the Jews of the mid-6th century B.C.E.⁹⁷ In the Book of Isaiah it is written: "One shall say, 'I am the LORD's,' another shall use the name of 'Jacob,' and another shall *mark* his arm with 'belonging to the LORD,' adopting the name 'Israel.'"⁹⁸

In addition to marking ownership and allegiance, another function of the tattoo is spawned from interpreting the tattooed *yod* as an abbreviation for יהודיא (*yehudai*), meaning "the Jews." Cowley, through his reading of the many Aramaic papyri identified this group of Judeans as Jews, for they called themselves by that name (יהודיא), and labeled their community חילא יהודיא (*chilei yehudai*), the "Jewish Force."⁹⁹ Thus, tattooing the *yod* was a message that the marked individual belongs to this particular Jewish community. The papyrus, in fact, described the announcement of the transfer of ownership in the presence of the entire community. Thus, the act as well as the form of

96. As a reminder, Dandamaev notes that an ax, hatchet, or spade representing the Babylonian deity Marduk and a stylus representing the deity Nabu were recorded in the texts from BE (Babylonian Expedition of the University of Pennsylvania, Series A: Cuneiform Texts) 8 106:9. Dandamaev, *Slavery in Babylonia*, p. 488

97. Second Isaiah is also referred to as Deutero-Isaiah. The term designates what is believed to be an anonymous author of chapters 40 onward in the Book of Isaiah. While the first part contained prophecies for the Jews of the 8th century B.C.E., scholars believe Second Isaiah is post-exilic containing addresses to the Jews of the mid-6th century B.C.E. [Mary Joan Winn Leith. "Into Exile: From the Assyrian Conquest of Israel to the Fall of Babylon." *The Oxford History of the Biblical World*, edited by Michael Coogan. (Oxford: Oxford University Press, 1998) p.282.] R. Norman Whybray – Professor of Hebrew and Old Testament Studies at University of Hull - is more specific, analyzing history and the texts, he calibrates Second Isaiah's prophecies between 550-539 B.C.E. [R.N. Whybray. *Second Isaiah*. (London: Continuum International Publishing Group, 2004) pp. 11-12]

98. Isaiah 44:5

99. Cowley, A. *Aramaic Papyri of the Fifth Century B.C.* (Oxford: Clarendon Press, 1923) p. xv. Interestingly, it is not until the Book of Esther, which takes place in Persia, that the Biblical text uses "איש יהודי" (Jew) to indicate the identity of an Israelite. As it is stated in the Biblical texts, "In the fortress of Shushan there lived a Jew (יהודי) named Mordechai." (Esther 2:5).

mark may have functioned as a rite of initiation and passage either into the ownership of a family and/or community.

Interestingly, the first papyrus demonstrates that even though the status of an individual may change (i.e. one is released from slavery), the indelible mark of this rite of passage into another's possession remained. Potentially, therefore, the mark of slavery served another function than purely a mark of status. Similar to the institution of slavery in Mesopotamia, in Egypt one became a slave to cover one's economic plight. As an Egyptian slave, one may retain control over property, have an additional profession, be entitled to compensation, and marry a master. Thus, the obvious omission in the text of the removal of the mark may imply its continual function, even if different from the original intention when the individual occupied the status of slavery. The tattoo, after manumission, may have continued to serve as a reminder of or warning against entering into a position of servitude.¹⁰⁰ While this function as well as its role as a mark of allegiance and rite of passage is only suggested by the evidence, the evidence makes it explicit that the primary function of the tattoo in the Persian period of Egypt was a demarcation for the status of slavery.

It is evident that the cultic use of the tattoo, present throughout most of Egyptian history, continued in the Ptolemaic period (ca. 305-30 B.C.E.). From this period we have two

100. This understanding is influenced by my Biblical interpretation. Throughout the Hebrew Bible, there are passages that permit items that were once used for unholy purposes to be retained in order that the community may see them, be reminded of them, and thus warned from making the same transgression again. For example, in Numbers 17:3 it is written, "Remove the fire pans of those who have sinned at the cost of their lives, and let them be made into hammered sheets as plating for the altar -- for once they have been used for offering to the LORD, they have become sacred -- and let them serve as a warning to the people of Israel." Another example comes from that same chapter. The Bible states, "The LORD said to Moses, 'Put Aaron's staff back before the Pact, to be kept as a lesson to rebels, so that their mutterings against Me may cease, lest they die,'" (Numbers 17:35). This interpretation also gains support from a slightly later period. In the Roman period, the tattoo was only part of a larger punishment as its permanence functioned after manumission from slavery or imprisonment.

textual remnants which testify to ritual tattoos, similar to those of the NK period. Both written accounts are variations of a single religious text of hymns. The longer of the two is called the Song of Iris and Nephthys, which was sung at the celebration of the Osirian mysteries.¹⁰¹ The shorter of the two is called the Lamentations of Iris and Nephthys, read as part of a funerary service found appended to the Book of the Dead.¹⁰²

Both textual remnants describe a ritual in which priestesses have the names of goddesses “inscribed on their arms.”¹⁰³ As the Lamentations of Iris and Nephthys prescribed the procedure: when the hymn “is recited, the place is to be completely secluded, not seen and not heard by anyone except the chief lector-priest and the setem-priest. One shall bring two women with beautiful bodies. They shall be made to sit on the ground at the main portal of the Hall of Appearings. On their arms shall be written the names of Isis and Nephthys.”¹⁰⁴ The passage concludes with the priests presenting a water and meal offering to the women, as if they were the deities inscribed on their arms.

Determining the precise form and thus explicating the exact function of these ritual tattoos remains problematic. As of yet, there is not supporting evidence, from any medium – artistic representations, extant written sources, preserved skins – that can testify that the images of either Isis or Nephthys were ever really employed upon human skin. If this is more than literary imagination, it may be argued that these tattoos were a distinguishing mark of temple servitude, as was common in the Mesopotamian region. However, as these tattoos were only implemented for and integral to this particular

101. Fox, “Body Marking.”

102. Miriam Lichtheim. *Ancient Egyptian Literature, vol. III* (Berkeley: University of California Press, 1980) pp. 116-121.

103. Fox translates the texts accordingly, understanding the Egyptian term ‘*mtn*’ as “inscribed.” [Fox, “Body Marking.”]

104. Lichtheim, *Ancient Egyptian Literature*, p. 120

priestly ritual, it is likely that the tattoos were not designation marks of unique service to the temple. Rather, these tattoos seem to possess the power to evoke a deity's presence within the mortal temple of the human body. This interpretation is supported by Fox, who concluded, "The markings on the women – the names of the goddesses...allow the priestesses to impersonate the deities."¹⁰⁵

As we come to the end of the Egyptian section of this research, we can see that the tattoo changed over the course of Egyptian history. What began as an import into the culture from the Nubians, as dots and dashes to relate one's sexual and reproductive desires as well as one's concern for an existence in the hereafter, ended with a tattoo which certainly was more complex both in form and function. As the thesis explores the Biblical presentation of corporal marks, it will not be the tattoos of the early periods of Egyptian culture which find a parallel in the culture of ancient Israel. Rather, the later tattoos of Egypt, those of the names and symbols of masters (both divine and mortal) placed upon the hand and other parts of the body to mark ownership, evoke protection, and identify allegiance to a group or deity, would really arouse the sensitivities of the ancient Israelites as they formulated their cultural values and attitudes on tattoos and the practice of tattooing.

105. Fox, "Body Marking."

Mediterranean Region:

Evidence of tattooing in the Mediterranean region of the ancient Near East is very limited. There are, as of yet, no preserved skins to talk about and what we do know about the act of tattooing in this region either comes from a scant amount of textual witness or from even fewer remnant artistic presentations. Yet, a few such artistic presentations may posit the presence of tattooing in the Mediterranean culture rather early. A female figurine, discovered in southern Anatolia, has lines and dots marked on her shoulder and abdomen.¹⁰⁶ Also, another female figurine similarly marked with dots on her chest was discovered in Greece.¹⁰⁷ From the dating of both these figurines, Fox suspects that tattooing may have begun in this region as early as 5000 B.C.E.

However, as these are the only pieces of evidence to allude to the presence of tattooing so early in the region's history, it may be more accurate to state that the practice took root in the Mediterranean region sometime around the 6th or 5th century B.C.E. as an offshoot of Persian culture. Through the Persian (ca. 499-479 B.C.E.) and Peloponnesian (ca. 431-404 B.C.E.) Wars, inhabitants of the Mediterranean region became aware of Persian culture. Herodotus, a Greek historian, writing in the 5th century B.C.E. recounts the Persian King Xerxes' reaction to a storm's destruction of a recently built bridge at Hellespont:

“Xerxes...order that three hundred lashes of the whip be inflicted on the water and a pair of shackles be thrown into it. I have even heard that in addition he sent tattooers [*stigess*] to tattoo [*stixontes*] the Hellespont. In

106. Fox, “Body Marking.”

107. *Ibid.*

any case, he ordered his agents to say as they did their whipping, ‘O cruel water, your master imposes this penalty upon you for doing him wrong when he had done no wrong to you.’”¹⁰⁸

While this literary piece is purely metaphorical, as Xerxes is depicted as an angry master inflicting punishment on his slave – the water, it correctly captures an echo of Persian culture by the Greek writer. The Persian tattoo, as exposed fully in the Mesopotamian and Egyptian sections of this chapter, was a mark of slavery – particularly a punitive measure – which a master would inflict upon a slave who was disobedient or exhibited the potential to be so. Within these cross-cultural contexts of the ancient world, the Greeks began to use the tattoo in their culture.

The earliest reference to the tattoo in the Mediterranean region comes from the extant writings of the 6th century B.C.E. poet Asius of Samos (an island just off the Asian coast, close to the border of the Persian Empire). His writings mention the word *stigmatias*.¹⁰⁹ The terms *stigmatias* or *stigmata* are derived from the Greek root *stigma*. According to the New Catholic Encyclopedia, *stigma* meant “a mark and in particular, a brand impressed by iron.”¹¹⁰ Convincingly, C.P. Jones argues in his critical works on tattooing in Greco-Roman antiquity that with a thorough analysis of the word *stigma* the particular claim of branding cannot be substantiated.¹¹¹ He insists, almost always a *stigma* in antiquity was a tattoo because a brand, which was used upon animals, was virtually never

108. Herodotus, *Histories*, 7, 35 [C.P. Jones. “Stigma and Tattoo.” *Written on the Body: The Tattoo in European and American History*. Caplan, J. ed. (Princeton, NJ: Princeton University Press, 2000) p. 7]

109. *Ibid.*

110. *Ibid.*, p. 2

111. C.P. Jones. “Stigma: Tattooing and Branding in Greco-Roman Antiquity.” *The Journal of Roman Studies*, Vol. 77 (1987) and C.P. Jones. “Stigma and Tattoo.” *Written on the Body: The Tattoo in European and American History*. Caplan, J. ed. (Princeton, NJ: Princeton University Press, 2000)

termed “*stigma*.” According to Jones, “The branding of humans was almost unknown to the Greeks and even among the more brutal Romans was comparatively rare, and was denoted by the word *stigma* only sporadically and at a comparatively later date.”¹¹²

Jones further supports his argument that *stigma* was a tattoo and not a brand by presenting his own etymology for the word. He writes, “The Greek word *stizein*, which is directly formed from the root (*stig*), means ‘to prick,’ and is related to the English sting, stitch, to the German *stechen* (‘prick’), *sticken* (‘embroider’).”¹¹³ To solidify the claim that a *stigma* was a mark made by the act of pricking the skin and adding color, a 6th century C.E. encyclopedia of medicine written by a doctor named Aetius, states: “They call *stigmata* things inscribed on the face or some other part of the body, for example on the hands of soldiers, and they use the following ink. [The recipe follows.] Apply by pricking the places with needles, wiping away the blood, and rubbing in first juice of leek, and then the preparation.”¹¹⁴ Therefore, it becomes clear that in the ancient Mediterranean world the term *stigma* (singular) or *stigmata* (plural) referred almost exclusively to tattoos.¹¹⁵

Also attested to in Aetius’ account, besides confirming that a *stigma* was a tattoo, was the locale of the Greco-Roman tattoo – affixed to the face or hands.¹¹⁶ According to an

112. *Ibid.*

113. *Ibid.* p. 4

114. Aet. 8 12. *Corpus Medicorum Graecorum* 8. 2, ed. A. Olivieri. (1950) pp. 417-418. Jones “*Stigma*,” p. 142.

115. Interestingly, in the Vulgate, a fifth century C.E. Latin translation of the Bible, the word *stigma* appears. The first of its two occurrences is in the translation of Leviticus 19:28 and the second is from Paul’s letter to the Galatians 6:17. [See Charles W. MacGuarrie. “Insular Celtic Tattooing: History, Myth, and Metaphor.” *Written on the Body: The Tattoo in European and American History*. Caplan J., ed. (Princeton, NJ: Princeton University Press, 2000) p.35]

116. Importantly, markings on the hand and forehead are also attested to in both the Hebrew Bible, as well as, in the New Testament. In the Book of Ezekiel, it is written, “The LORD said to him, ‘Pass through the city, through Jerusalem, and put a mark on the foreheads of the men who moan and groan because of all the abominations that are committed in it,’” (9:4). In the New

ancient commentator on the orator Aeschines, runaway slaves were often inscribed with a *stigma* on the forehead in the words, “Stop me, I’m a runaway.”¹¹⁷ This locale for the tattoo was also recorded in 360 C.E. by the bishop of Potiers, Hilary, who wrote an invective piece to Emperor Constantius II (Constantine’s son). “The complaint is well known: on your order, the bishops whom no one dared condemn have been disposed, and now they have been tattooed on their catholic foreheads and are reappraised with the words, ‘condemned to the mines.’”¹¹⁸

Apparently, from the sources presented above, the tattoo as re-envisioned by the Greeks and later inherited by the Romans was not solely a mark of slavery. Rather, the *stigma* could function as a mark of punishment, status as a prisoner-of-war, or sign of a soldier. In Petronius’s novel, *Satyricon*, the *stigma*’s use as punishment is spelled out in detail.¹¹⁹ In this story, two characters – Encolpius and Giton – attempt an escape from a hostile environment by actually masquerading as fugitives marked with *stigmata*. As it is translated by Jones: “A barber will shave the heads and the eyebrows of Encolpius and Giton, and then he himself will mark your faces with an elaborate inscription to give the impression that you have been punished with a *stigma*.”¹²⁰

Testament it states, “Also it causes all, both small and great, both rich and poor, both free and slave, to be marked on the *right hand* or on the *forehead*,” (Revelations 13:16) and, “On her *forehead* was written a name of mystery – ‘Babylon the great, mother of harlots and of earth’s abominations,’” (Revelations 17:5).

117. Scholiast to Aeschines, 2, 79 (Mervin R. Dilts, *Scholia in Aeschinem* (Stuttgart, Leipzig, 1992), p. 75, no 170a. Noted in Jones, C.P. “Stigma and Tattoo,” p. 9. It is also important to note that in rabbinic literature, at the end of the 2nd century C.E., Jews were exempt from culpability if they tattooed their slaves “so that he would not flee.” [*Tosefta*, *Makkot* 4:15]

118. Mark Gustafson. “The Tattoo in the Later Roman Empire and Beyond.” *Written on the Body: The Tattoo in European and American History*. Caplan, J. ed. (Princeton, NJ: Princeton University Press, 2000) p.18.

119. Petr. 103. 1-5, 105. 11-106. Text of K. Muller (1978) as noted in Jones.

120. The result of their ruse is only interesting as it relates back to the nature of the stigma as a tattoo and where it is placed upon the body. The ruse fails and Encolpius and Giton are brought before Tryphaena and Linchas. “Tryphaena burst into tears, because she thought real stigmata had been stamped upon our captive foreheads... Unable to restrain his rage, Linchas jumped forward

While the *stigma* was painful and certainly medically hazardous without the sterility of today's procedures, the physical ramifications were only part and parcel of the more comprehensive punishment which permanently defamed one's reputation and deprived one of social status. Mark Gustafson, whose research exposed the tattoo culture of the late Roman period, wrote: "those in power were well aware that the body can function as a permanently running advertisement of one's guilt and subjugation" when they constructed the legal system.¹²¹ As the legal corpus of *Augustan lex Aelia Sentia* (ca. 4 C.E.) attests to, in such a system

"slaves who have been chained by their masters on the grounds of punishment, or who have been tattooed [*quibusve stigmata inscripta sint*], or have been tortured under interrogation for wrongdoing...and afterwards have been manumitted either by their masters or another, became free men of the same status as foreigners who have surrendered."¹²²

So far as the indelible mark of their status or crime remained, the freedom granted was limited as these native individuals were never again reinstated with full citizenship.

In addition to depriving one of social status, the punishment of the *stigma* could also permanently stain one's reputation. A poignant example is presented in a later Byzantine account from the 9th century C.E. as Emperor Theophilus punished two brothers, Theodore and Theophanes, with *stigmata* for icon worship. The historian Zonaras stated:

and said, 'You stupid woman! As if these [*stigmata*] were wounds prepared with iron as to absorb letters. If only they had defiled themselves with this writing, we would have the best satisfactions. As it is, they have played a stage-trick on us, and fooled us with mere shadow-writings.'" [Jones, "Stigma," pp. 139-140]

121. Gustafson, "The Tattoo in the Later Roman Empire and Beyond," p.24

122. *Ibid.* p.22 – Another example: In 523 C.E., we have a prison account by Boethius, who recounts that two men were arrested for fraud and sentenced by the Ostrogothic King Theoderic for exile, stating, "If they do not leave the city of Ravenna by the prescribed date, they would be tattooed on their foreheads and driven out." The tattoo was only part of a punishment, which included exile. [Gustafson, "The Tattoo in the Later Roman Empire and Beyond," p. 20]

“First he had them severely beaten, then he had their faces tattooed and poured ink into the tattoos, and tattoos formed letters.” Ironically, the brothers later transformed from sinners to saints. Nevertheless, they were never able to rid themselves of the stain of their act, as they were known reverently by the name *graptoi*, meaning “the Inscribed.”¹²³

Beyond punishment, the Greco-Roman tattoo was also implemented upon prisoners-of-war. Biographer Plutarch, who wrote of two Athenian military campaigns, captures this function of the *stigma* in his writings. In a battle between the Athenians and Samians in the year 440 B.C.E., Plutarch remarked how “the Athenians tattooed their Samian prisoners-of-war on the forehead (*estizon eis to metapon*) with a Samian ship called a *samaina*, while the Samians tattooed their Athenian ones with an owl, the emblem of Athens.”¹²⁴ In addition to indicating their captive status, the *stigma* also identified their place of origin. Sadly, this particular custom does not continue. 30 years later, in 413 B.C.E., Plutarch writes after a failed Athenian expedition to Sicily that the Sicilians “sold their Athenian captives ‘marking them with a horse (emblem of Sicily) on the forehead (*stizontes hippon eis to metapon*).’”¹²⁵

Participants in the military apparatus had the possibility of being marked twice: potentially once by the opposing military force as prisoners upon their capture, and a second time through personal choice or conscription by their own military system. Roman authority for a time employed the tattoo as a conscripted sign of service for their military members. The tattoo appeared as dots representing the name and unit number of

123. Jones, “Stigma and Tattoo,” p. 10

124. Plutarch, *Life of Pericles*, 26, 3. Also noted in Jones, “Stigma and Tattoo,” p. 8

125. *Ibid.*

the recruit.¹²⁶ Extending the practice in 398 C.E. to arm-manufacturers, an imperial edict stated: “Tattoos [*stigmata*], this is a public mark, must be made on the arms of arm-manufacturers as they are on recruits, so that in this way at least they may be recognized if they go into hiding.”¹²⁷ Essentially, military members during this period of time were regarded as indentured servants. And, since tattoos were marked on slaves in order to restrict their ability to blend into society, Romans found the *stigma* equally fitting for those who would try to avoid military service.

Among Roman soldiers the tattoo also developed into a rite of passage, which is to say that the warrior would be marked as a sign of bravery after war. The practice began as the Romans encountered the ancient Briton warriors, who were tattooed as signs of high status and bravery. From them, the Roman soldiers learned that the tattoos were not merely monotone marks of degradation, but could speak of strength and bravery.¹²⁸ Upon their return, some Roman soldiers turned to medical professionals as practitioners for the tattoo, as was alluded to in the *stigmata* section of Doctor Aelius’ 6th century C.E. encyclopedia of medicine, quoted previously.

Yet, because Greeks and Romans first encountered the tattoo from so called “barbaric” cultures – such as those of the Persians and ancient Britons – tattooing was consequently viewed by the majority of the populace as a barbaric practice.¹²⁹ For this reason, the tattoo was a laggard into the Greco-Roman world. Even when the tattoo did enter the

126. Vegetius, *On Military Matters*, 2, 5, 2. Also noted in Jones, “Stigma and Tattoo,” p. 12

127. Code of Theodosius 10, 22, 4. Also noted in Jones, “Stigma and Tattoo,” p. 12

128. Cate Lineberry. “Tattoos: The Ancient and Mysterious History.” *Smithsonian.com*. (1 January 2007)

www.smithsonianmag.com/history-archaeology/10023606. According to Lineberry, “the Romans named one northern tribe [of Britons] ‘Picti,’ literally ‘the painted people.’”

129. This perception must be understood as purely ethnocentric.

culture, the stigma as it was termed almost never assumed the function of personal adornment, but remained from its inception a degradation mark of slavery, criminality, status as a prisoner-of-war, or sign of conscripted military service. Saturated with such pejorative implications, giving strength to *stigma*'s contemporary meaning, it is no wonder that even today the tattoo struggles to rid itself of the negative stain from which it was made in Mesopotamia and set-in during Greco-Roman history in the Mediterranean.

Additionally, the tattoo had a slow start into the Greco-Roman world as a result of internal values which perceived the tattoo as counter-culture. Therefore, hesitancy to embrace that practice of tattooing was not simply a negative perception of outside cultural groups and the practices they maintained. Secular Greek and Roman societies distained the tattoo because they affirmed the sanctity of the human form, which above all else should be perfected.¹³⁰ Tattooing, thus, was perceived as adversarial towards those ends. This social attitude was only strengthened when Constantine (ca. 272-337 C.E.), who adopted Christianity, allowed Christian sensibilities to infiltrate Roman legislation.¹³¹ Together, they combined to form a new position on tattooing that would reverberate throughout the ages. As the issue of being created in the image of God was first pronounced in relation to tattooing, the edict stated:

“If someone has been condemned to a gladiator school or to the mines for the crimes he had been caught committing, let him not be marked on his face, since the penalty of his condemnation can be expressed on his hands

130. Alan Govenear interview, “In Search of History: Art of Tattooing,” Diana Friedberg, ed. (History Channel: A & E Television Networks, 1998. Govenear is the author of *Stoney Knows How: Life as a Tattoo Artist*. (Atglen, PA: Schiffer Publishing, 2003).

131. In the year 313 C.E. Constantine issued his Edict of Milan, which removed the punishments once in place for individuals professing Christianity and allowed for confiscated church property to be returned.

and on his calves, and so that his face, which has been fashioned in the likeness of the Divine beauty, will not be disgraced.”¹³²

Although not done away with completely, it appears from the archeological remains that metal tags and collars began to be used as viable alternatives to the very visible stigma of the tattoo on the forehead.¹³³

There will, however, always be individuals within any society who will rebel against normative laws and trends to procure the tattoo for personal empowerment and expression. In fact, early Christians in the Roman Empire found a source of defiant strength in the act of tattooing. From Paul’s writings, we read, “Henceforth, let no one give me trouble, since I carry the *stigmata* of the Lord Jesus on my body.”¹³⁴ Christians from the Roman period onward found, in Paul’s account, the impetus to similarly mark themselves with the *stigmata* of Jesus. These *stigmata* are believed to have been small tattooed-crosses on the inner wrists and upon the feet (i.e. the places of the nails in the act of crucifixion). Such marks are still made today by the Coptic Christians of Egypt and Ethiopia, who in the face social pressures against their faith found and continue to find a

132. Gustafson, “Tattoo in the Later Roman Empire and Beyond,” p.21. The edict is preserved in a collection of imperial legislation published in 438 C.E., called the Theodosian Code. It is one of the earliest written accounts presenting the concern the act of tattooing may have for the mold of the Divine image in which man was cast. This same theological reason will be introduced much later in the modern period, in the responsa of the Reform, Conservative and Orthodox Jewish movements in the United States, as a principle for Jewish religious aversion to voluntarily marking oneself with a tattoo.

133. On one such bronze slave tag, dated to the third to fourth century of the Common Era, it is written, “I am Asellus, slave of Prejectus attached to the ministry of markets, and I have escaped the walls of Rome. Capture me, for I am a fugitive slave, and return me to Barbers’ Street near the Temple of Flora.” [Paul Veyne. “The Roman Empire.” *A History of Private Life: From Pagan Rome to Byzantium*. Veyne, P., ed. (Cambridge: The Belknap Press of Harvard University Press, 1987) p.59. These artifacts are very intriguing, especially in relation to the OB period. It is from that period in which Mendelsohn theorized that the slave mark of the *abbuttum* was in the fashion of a tag worn around a part of the body, such as the neck, similar to what is now presented from the Roman period of the Mediterranean region.

134. Galatians 6:17

strength in bearing upon their bodies the tattooed marks of Jesus. For like Paul, there is hope that such marks may imbue the bearer with the Divine favor of protection.¹³⁵

Although the tattoo of the Mediterranean was predominantly pejorative, placed upon the forehead and hands of slaves, criminals, prisoners-of-war, and conscripted military servants, it nevertheless emerged for a few Roman soldiers and early Christians as a sign of strength and bravery in the face of hostility. As we now arrive at the ancient Israel section of this chapter, not only will the form and functions of these Greco-Roman tattoos help in shedding some light on the Biblical presentation of corporal marks, which were similarly implemented on the hands and foreheads. But, the ability to hold multiple perspectives on tattooing within one collective culture will be invaluable in formulating an explanation why in the collected works of the Bible there are passages which both attest and affirm the use of corporal marks while others prohibit them.

135. Although this account is much later – and for that reason not included in the body of this chapter – it affirms the use of the tattoo among some Christian groups. In a very interesting 17th century account, a Christian pilgrim to Jerusalem wrote: “We passed the whole of Monday, the 29th of April, having our arms marked as all the pilgrims usually do: the operation is performed by Christians of Bethlehem belonging to the Latin rite. They have several wooden moulds, among which you choose those you like the best. Next they fill them with charcoal powder. Then they apply them to you in such a way as to leave the mark of what is engraved on them. After that they take your arm by their left hand, stretching the skin tight; in their right hand they have a little stick with two needles, and they dip it from time to time in ink mixed with ox-gall, and prick you with it along the lines made by the wooden mould; that is presumably harmful, and as a rule there ensues a slight fever which lasts a very short time, and the arm remains swollen to three times its normal size for two or three days. After they have pricked all along these lines, they wash the arm and check to see if there is some fault, whereupon they begin again, and sometimes they resume as many as three times. When they have finished, they bandage your arm up very tight, and a scab forms which falls off two or three days later, and the mark remains in blue and never fade.” [Jones, “*Stigma*,” p. 145]

Ancient Israel:

Archeological remains are non-existent when it comes to providing evidence of corporal markings among ancient Israelites.¹³⁶ What does remain about tattooing from Israelite culture was preserved almost exclusively in the Biblical text. However, as was evident among other cultures of the ancient world, messages about corporal marks in any ancient text are often enigmatic. The Bible does not disappoint in this matter, as the Israelite corpus presents conflicting viewpoints about corporal marks: Leviticus 19:28 comes to condemn such marks, Isaiah 44:5, 49:16 affirm them, and Genesis 4:15 as well as Ezekiel 9:4 simply attest to their presence. The following section will illuminate these verses in light of the cultural contexts of tattooing as explored in Mesopotamia, Egypt, and the Mediterranean. Through comparing and contrasting the corporal marks of these regions with the picture of corporal marks contained in the Bible, the ancient Israelites' attitude on tattooing will be exposed.

Genesis 4:15 – The Mark of Cain: Protection or Punishment?

The first Biblical text which attests to the use of corporal marks actually depicts God employing it on one of his own, Cain. As it is written in the Book of Genesis, “the LORD put a mark (אֹת/ot) on Cain, lest anyone who met him should kill him.”¹³⁷ While this text may be part of Israel's primeval mythology, a universal story of the origins of

136. The corporal mark that is attested to in archeological evidence from this region and time is not of tattoos or of brandings, but of piercing. Supporting the Biblical passages which talk about the act, archeologists have found jewelry in excavations from the region. Still, however, no archeological evidence of tattooing can be put forth for the period in question. Surprisingly, though, there was found in Jordan two female figurines that bear marks that have been identified as tattoos from the ca. 7000 B.C.E. [Alan Simmons and Gary Rollefson. “The Early Neolithic Village of ‘Ain Ghazal, Jordan” in *Preliminary Reports of ASOR-Sponsored Excavations 1981-1983*. Walter Rast, ed. (Winona Lake: Eisenbrauns, 1985) pp. 40-42, figs. 3 & 4].

137. Genesis 4:15

humankind, contained in Genesis 1-11, such stories can reflect real practices within that history. Thus, from the situation of Abel's murder by his brother Cain, a picture develops of a corporal mark in the Biblical world that was permanent, since he was to become a "ceaseless wanderer on earth," and used as a symbol for Divine protection and/or punishment.

While it functioned that way in the text, it may have very well functioned as a mark of protection in the culture similar to the ones in use among the ancient Egyptians. From the Egyptian region presented in this chapter, the research showed that silhouettes or symbols representing the deities of the Egyptian pantheon were incised on the skins of women to imbue the body with strength and protection during the vulnerable periods in their lives, such as pregnancy. Therefore, reflective of this practice, the mark of Cain may have likewise been a permanent corporal mark, such as a tattoo, either as the name of God or iconography of the deity – a mark readily identifiable to others.¹³⁸

Yet, since symbols of all forms, including tattoos, are multi-vocal (speaking not only to the marked individual, but as well to different viewers in different ways), it may be likely, even if unintentional, that God's mark on Cain in addition to being a protective symbol was also understood as part of the punishment. From one's understanding of the Babylonian, Persian and later Greco-Roman cultures, it may be similar to a master punishing one of his slaves or servants with a tattoo for an act of disobedience.¹³⁹ As noted in the Mediterranean section, in 523 C.E., two men were arrested for fraud and

138. Fox makes this claim in her forthcoming work, "Body Marking."

139. Not only would the punitive nature of the mark be more reflective of Babylonian and later Persian customs, but we also witnessed from the Greco-Roman period that the permanence of the tattoo had a lasting impact on the individual. Even when used as a temporary demarcation of punishment, one could never shake the "stigma" of the mark.

sentenced by the Ostrogothic King Theoderic to exile, stating, “If they do not leave the city of Ravenna by the prescribed date, they would be tattooed on their foreheads and driven out.”¹⁴⁰ Although the tattoo, in all these matters directly affected the marked individual, it was not intended for his/her benefit alone. The tattoo also functioned as a visible warning about the unforeseen nature of the individual. Thus, it may be understood that God permanently marked his servant Cain as a result of the murder of his brother Abel in order to warn others. In this way, not only does the mark help fulfill God’s protection of Cain, since individuals would heed the warning and keep their distance, but it also served to protect others. It is as if to say, “This one has been marked for protection, for he killed his brother. Be warned and keep your distance!”¹⁴¹

Isaiah 44:5 and 49:16 – A Covenantal Sign: Marking the Hands as “Belonging to...”

Both these verses are found in Second Isaiah. Modern critical scholarship has proposed that the chapters of Second Isaiah were written after the destruction of the First Temple, post-exilic, and added to the earlier compositions of chapters 1-39. Therefore, in this time of woe and desperation among the exiled in Babylon, the prophet’s words come to comfort the people. His message in Isaiah 44 captures the power of the eternal covenant – *brit olam* – between God and the people of Israel. As it is written:

Hear now, O Jacob, my servant – Israel whom I have chosen! Thus said
the LORD, your Maker, your Creator who has helped you since birth: Fear
not My servant Jacob, Jeshurun whom I have chosen. Even as I pour

140. Gustafson, “The Tattoo in the Later Roman Empire and Beyond,” p. 20

141. Although Fox stops short at accepting this view, choosing to emphasize the mark of Cain as a mark of protection, other scholars such as Claus Westermann. *Genesis 1-11 A Commentary* (translated by John J. Scullion S.J.; Minneapolis: Augsburg publishing House, 1984) pp. 308-314 support the connection of the mark with Cain’s punishment. In truth, as presented above, the ancient Near East cultural background for tattooing provides support for both.

water on thirsty soil and ran upon dry ground, so will I pour My spirit on your offspring, My blessing upon your posterity. And they shall sprout like grass, like willows by watercourses. One shall say, “I am the LORD’s,” another shall use the name of “Jacob,” [and] another shall mark his hand as “belonging to the LORD,” adopting the name “Israel.”¹⁴²

Countering the claim that these remarks were made with regards to proselytes, Fox contends that “the subject is the community in exile [not non-Israelites] whose members could assimilate, but instead are reaffirming their ethnic and religious identity as Israelites.”¹⁴³ The reaffirmation comes in an act of allegiance. Where, in today’s American society, we place our right hand over our heart and recite a pledge, at that moment in Israelite history, Second Isaiah informs us that the nation of Israel will likewise openly declare their allegiance. Not by placing a hand over a heart, but through an act of affirmation: stating they belong to the God of Israel, are called by the name of the nation’s ancestral progenitor Jacob, or inscribing upon the hand the mark of “belonging to the LORD.”¹⁴⁴

These acts of allegiance must be understood as permanent, for such pledges, whether in ancient rites or modern practices, are never viewed as temporary. Thus, marking one’s hand as “belonging to the LORD” was a lasting expression of solidarity and adherence by the “servant Jacob” to the God of Israel. Albeit, in this instance it was a self-selected practice, there are parallels of the act found within Neo-Babylonian and Persian culture.

142. Isaiah 44:1-5

143. Fox, “Body Marking.”

144. Fox notes that it may make more sense to read the verb “*וְיִקְרָא*” as a *niphal*, “*וְיִקְרָא*” thus rendering the section “will be called by the name Jacob.”

As was presented in the Mesopotamian section above, slaves dedicated to service to a temple not only served in that role for life, but they were permanently marked with the symbol of the deity as a sign of their “selected” service. This was particularly the case for servants to the temple of the goddess Ishtar.

The strongest parallel to date of Second Isaiah’s description of the servant Jacob being marked on his hand for his master God comes from contemporaneous evidence of Jews employing the tattoo to mark their slaves. During the Persian period of Egypt (ca. 525-404 B.C.E.), roughly the same time of Second Isaiah’s writings, the Jews of Elephantine Island wrote accounts which maintained the custom of tattooing their slaves on the hand with the exact same formula as attested to in the Isaiah passage: “belong to...” followed by the master’s name. For example, in one papyrus it stated: “A *yod* is tattooed on his arm at the right of a[nother] tattoo in the Aramaic language, [stating] “belonging to Mibtachiah.”¹⁴⁵ One possibility is that the tattooed *yod* was an abbreviation of the name of God (יהוה), for even in the Diaspora He remained the national deity of the Jews. While the Isaiah account may be purely metaphoric, the metaphor is certainly contingent upon the real practice of tattooing amongst Jews within the neighboring cultures of ancient Israel. Evidently, in this period, it was a common and accepted practice for individuals to mark or to be marked as a visible sign of their allegiance to a master. Specifically, the practice of marking the hand as “belong to...” was procured by Second Isaiah and promoted amongst Israelites to illustrate their allegiances to God and the eternal covenant.

145. Cowley, *Aramaic Papyri*, p. 104, no. 28. I have made slight alterations to the account as a result of the analysis of the text in the Egyptian section of this chapter..

Fulfilling the tradition of the eternal covenant, which requires both parties to actively participate, Isaiah mirrors the act of allegiance demonstrated by the people with a symbolic gesture by God. According to Isaiah 49:16, God acknowledges His part in the covenant, stating “See, I have engraved you on the palms of My hands, your walls are ever before Me.” The people of Israel have sworn their loyalty through a permanent mark on the hand, and in return God will forever keep them, literally, engraved on the palms of His hands. Even symbolically, these words would have consoled the heart and soul of the exiled community. For these real cultural practices provided a way for the people in these difficult times to talk about God as well as the unconditional and eternal relationship they have with Him, expressed in the act of tattooing.

Ezekiel 9:4 – Mark of the Righteous for Divine Protection

Another text that attests to the corporal mark comes from the Book of Ezekiel. Here, the prophet foretells of the destruction of Jerusalem, which will come at the hands of six divinely appointed executioners. Their job will be to rid the city of its abominations by killing all transgressors. In order to fulfill this mandate, one of these six will carry not a sword, but a writing instrument called a קֶסֶת (*keset*).¹⁴⁶ He is commanded by God:

“Pass through the city, through Jerusalem, and put a תָּ/taḅ (mark) on the foreheads of the men who moan and groan because of all the abominations that are committed in it.” To the others God said...”Follow him through the city and strike; show no pity or compassion. Kill of graybeard, youth

146. Ezekiel 9:2, 3, and 11

and maiden, women and children; but do not touch any person who bears
the תו/*tav* (mark).”¹⁴⁷

It is unclear how the ancient Israelites would have read or heard and understood the corporal mark mentioned in these verses. Was it an indelible mark or merely a temporary indicator on the human corpus? Fox notes that קֶסֶת (*keset*) is a loanword from the Egyptian, *qsty*, meaning “writing kit.”¹⁴⁸ In the Egyptian writing kit there were two colors of ink: black and red.¹⁴⁹ It has already been pointed out in the introduction to this thesis that both of these colors were closely associated with the act of tattooing from the earliest periods of human history. Therefore, although not clearly attested in the text, it may be possible that the mark of Ezekiel was understood by the ancient Israelites as the permanent corporal mark of the tattoo.

Despite the ambiguity that surrounds the nature of the mark, what is clear from the text is its function. Like the “mark of Cain,” the *tav* – written in paleo-Hebrew as an X – functioned as a Divine stamp of protection. In Ezekiel, however, it cannot be argued that this was also part of a punishment, for the corporal mark was placed solely upon the righteous as a way to visibly separate the faithful adherents from their fellow Israelites who had sinned. Interestingly, it has been suggested that the X mark held an additional meaning. Since the letter *tav* in ancient Israelite society was used to indicate ownership, it could be interpreted that these marked individuals literally “belonged to God.”¹⁵⁰ After all, this understanding would be congruent to the aforementioned prophecies of Second

147. Ezekiel 9:4-6

148. Fox, “Body Marking.”

149. *Ibid.* p. 27

150. Fox, “Body Marking.”

Isaiah and still harmonious with the implications of the mark in the text. Not only does the mark of Ezekiel separate the “righteous” from the “wicked,” but it also attests to the continued relationship the faithful had with God, forsaken by the others.

In addition, the locus of the mark indicated in Ezekiel’s prophecy would have pierced the consciousness of the ancient Israelites. As was evident in the ancient Near East as well as the late periods of Greco-Roman antiquity, the forehead was the locale-of-choice for the corporal mark of the tattoo. In these other cultures, the tattoo on the forehead was used pejoratively, speaking to the onlooker of the marked individual’s crimes or low status. In this case, most intriguingly, Ezekiel used the custom of marking the most visible place on the canvas of the human corpus not for punitive means. Rather, marking the forehead in ancient Israelite culture could connote a constructive value as the mark projected the lasting message of God’s favor of protection to those who remained faithful.¹⁵¹

Leviticus 19:28 – The Prohibition

The prohibition comes in the context of the Holiness Code in *parashat K’dushim*, in which God lays out for Moses and the Israelites the general principle to be holy: “You shall be holy, for I the LORD your God am holy.”¹⁵² This verse then follows with the specific *mitzvot* (commandments) that the people should and should not do in order to fulfill the principle. Just prior to the prohibition on tattoos, the Israelites are warned against eating anything with blood in it, practicing divination or soothsaying, shaving the

151. Keel, as reported by Fox (p. 27), “connects the mark in Ezekiel with depictions of small plaque-like pendants attached to the forehead of certain female figurines. Especially interesting is the female on an ivory from Arsian Tasch showing a woman in the window... The woman wears a plaque marked with an X or *tav*.” [Othmar Keel. “Zeichen der Verbundenheit, zur Vorgeschichte und Bedeutungen von Deuteronomium 6,8f. und Par.” *Pierre Casetti, et al., eds. Melanges Dominique Barthelemy* (OBO 38, Fribourg: Vandenhoeck & Ruprecht, 1981) p.202, figs.16-17]

152. Leviticus 19:2

side growth of the head or beard, and making gashes in the flesh for the dead. Finally, we read in Leviticus 19:28:

וכתבת קעקע לא תתנו בכם אני יהוה

“*You shall not incise marks [tattoos] on yourself: I am the LORD.*”

The legal term given to the mark is כתבת קעקע (*ketovet ka’aka*). Undoubtedly, the act of כתבת (*ketovet*) is writing, coming from the Hebrew root כ.ת.ב. We may be inclined from our modern perspectives to understand “writing” as an act of making marks with a pen or pencil on a piece of paper. In ancient Israel, however, such writing utensils were not common and more often than not writing was a process of incising, as on a stone or on some other hard material.¹⁵³ In the case presented above, the hard surface implied in the verse is the human body upon which the writing or incising would be made.¹⁵⁴

The etymology of the term קעקע (*ka’aka*) is less obvious. As it occurs one time in the Hebrew Bible – thus being a *hapax legomenon* – it has been suggested that it was formed from duplicating the root ק.נ.ע, meaning “to deepen, to dig deep.”¹⁵⁵ According to Ernest Klein this root also appears in Arabic as *qā’*, meaning “plain, lowland, bottom.”¹⁵⁶ Without the availability of other texts, testifying to the same mark, it has left modern

153. A similar instrument is used by the prophet Jeremiah to metaphorically speak about incising the hearts of sinners. As it is written in the Book of Jeremiah 17:1, “The guilt of Judah is inscribed with an עט ברזל (*et barzel* - stylus of iron), engraved with an adamant point on the tablet of their hearts.” In the Old Babylonian period of Mesopotamia a similar instrument was used to tattoo slaves. The instrument was called a *šindu parzilli* (an iron stamp). Although recorded in a later period than that of ancient Israel, it was understood generally by the rabbis of the Talmud (redacted ca. 500 C.E.) that “כתב” was a term for writing that may include engraving. According to BT *Gittin* 20a, “A slave who goes out [to freedom] with writing (כתב) that was on a board or on a tablet [of clay, is to be regarded as legally] going out to freedom.”

154. See Aaron Demsky’s article on “Writing” in the *Encyclopedia Judaica* for a complete analysis of writing in ancient Israel. [Aaron Demsky. “Writing.” *Encyclopedia Judaica*, Vol. 16. (Jerusalem: Keter Publishing House Ltd.) pp. 654-665]

155. Ernest Klein. *A Comprehensive Etymological Dictionary of the Hebrew Language for Readers of English*. (New York: MacMillan Publishing Co., 1987)

156. *Ibid.*

commentators open to a wide range of interpretations from simply decorations to an incision.¹⁵⁷ Although the original definition of קעקע (*ka'aka*) may forever remain elusive, in conjunction with כתבת (*ketovet*) it may be fair to surmise that within the ancient Israelite contexts the mark in question was almost certainly a tattoo, created by incising the skin and adding colored matter as to leave an indelible mark.

The Levitical prohibition against tattooing appears to be a stark contrast to the citations of Genesis, Isaiah, and Ezekiel, which uncritically attested to the use of corporal marks. There are multiple ways one could make sense of this contradiction. The first way is to say that no contradiction exists, as כתבת קעקע (*ketovet ka'aka*) is somehow inherently different than the aforementioned Biblical examples of corporal marks and therefore not affected by the prohibition. After all, as כתבת קעקע (*ketovet ka'aka*) is a unique appearance in the text, it can be argued that the “אות/ot of Cain” in Genesis or the “תו/tav” in Ezekiel are not encompassed by the prohibition since they are not presented in the same terminology as the mark of the prohibition: כתבת קעקע (*ketovet ka'aka*).¹⁵⁸ If the prohibition was not aimed at the corporal marks attested to in Genesis, Isaiah, and Ezekiel, which used the mark of the ancient world for its positive functions as marks of protection or affirmation of Israelite identity, what then was Leviticus prohibiting?

Perhaps the prohibition against כתבת קעקע (*ketovet ka'aka*) in Leviticus 19:28 was directed solely at the pejorative functions of tattooing: punitive, submissive, and pagan rites evident in the cultures which neighbored ancient Israel. For example, from the Bible

157. Koehler Ludwig and Walter Baumgartner. *The Hebrew and Aramaic Lexicon of the Old Testament*, Vol. III. M.E.J. Richardson, ed. (New York: E.J. Brill, 1996) p. 1116 and J. Reider. “Etymology Studies in Biblical Hebrew.” VT 2 (1952) p. 8.

158. Although it may be argued that the Leviticus prohibition would be applicable to the mark mentioned in Isaiah for it was implemented by an act of incising/writing = יכתב (whose root is כ.ת.ב.). Also, out of all the Biblical texts to refer to a corporal mark it seems Isaiah provides the strongest connection to actual tattooing in the ANE.

it is known that ancient Israelites looked down upon the act of voluntarily submitting to slavery. A man who declared, “I do not wish to go free,” would then be taken by his master “before God. He shall be brought to the door or the doorpost and his master shall pierce his ear with an awl; and he shall remain his slave for life.”¹⁵⁹ A decision, which ensued with such an aggressive act leaving the individual with a corporal scar, could imply that the choice of voluntary subjugation to a mortal or “other” divine master, was highly stigmatized within Israelite culture.¹⁶⁰ Another form of corporal scar – the tattoo – may have been similarly prohibited for it too was associated with the practice of slavery to a mortal or “other” divinity from Israel’s cultural neighbors. According to the Book of Isaiah, the only master the “servant Jacob” may choose is God.

Instead of ensuring that only the positive functions came in and aversive cultural practices stayed out, the prohibition of כתבת קעקע (*ketovet ka’aka*) may have also been implemented to keep Israelite identity intact and distinct from others. Modern critical scholarship of the Bible has proposed that most of the Book of Leviticus was written sometime during the Babylonian exile.¹⁶¹ If this is the case, then no longer can we be satisfied with viewing the prohibition within the vacuum of Israelite society, seeing contradictions between the corporal marking of Leviticus and the other Biblical citations. Rather, from a purely ethnocentric and temporally contingent Israelite perspective within

159. Exodus 21:5-6 and Deuteronomy 15:16-17

160. Contempt for the choice of voluntary submission was not confined to ancient Israel. From the Middle Assyrian Laws, Law 44, it states: “If an Assyrian man or an Assyrian woman dwell in a man’s house as a pledge equivalent to their own value...his master may smite him with a rod, pull out his hair, break or pierce his ears.” [Hurowitz, “His Master,” p.65] One may surmise similarly that since the pledge of a free person into servitude was accompanied by a list of physically aggressive acts that would ultimately cause pain and disfigurement, the voluntary submission of one’s freedom was a highly stigmatized act in the Assyrian society as well.

161. Baruch A. Levine. “Leviticus: Introduction.” *The JPS Torah Commentary*. (Philadelphia, New York, Jerusalem: The Jewish Publication Society, 1989) pp. xxv-xxx

a non-Israelite society, the Leviticus verse may have been intended to safeguard Israelite identity against the alternative cultural forces that would have attempted to assimilate the Diaspora Jew. In other words, tattooing was regarded by the Jews of the Diaspora as a Babylonian or later Persian practice, no matter what function it served. Since Israel was prohibited “from following the practices of the [other nations],” the writers of Leviticus enacted the prohibition to ensure that Israelites remained visually and culturally distinct.¹⁶² By way of Leviticus 19:28, the authorities of the text hoped to provide some assurance and insurance that Israelites identity would survive the exile so that it could return to the Land when the time came.

Finally, in order to comprehend the contradiction between Leviticus and the other presentations of corporal marks in the Bible, one may simply have to affirm that the contradiction exists and is correct. Yes, the Bible both affirms and prohibits tattooing. Aaron Demesky of Bar Ilan University conceded this position, writing in the *Encyclopedia Judaica*, “while this [prohibition] was a general rule, there seem to have been cases where devotees of YHWH did incise His name on their arms.”¹⁶³ An assumption of co-existence is not out of the realm of possibilities. After all, there are many contradictions in the Bible.¹⁶⁴ Furthermore, as attested to in the other references to tattooing from the ancient world, many cultures maintained a similar contradiction between personal practices and prevalent social norms. The most poignant examples are

162. Leviticus 18:3 and 20:23

163. Demsky, “Writing,” p. 663

164. For example, is one generation punished for another generation’s sins? According to Exodus 20:5, “I, the LORD, your God am an impassioned God, visiting the guilt of the parents upon the children, upon the third and upon the fourth generations.” This sentiment is repeated in Exodus 34:6-7, and in Deuteronomy 5:9. However, the Bible also states the contrary in Deuteronomy 24:16: “Parents shall not be put to death for children, nor children be put to death for parents: a person shall be put to death only for his own crime.” Ezekiel concurs, writing, “The person who sins, he alone shall die. A child shall not share the burden of a parent’s guilt, nor shall a parent share the burden of a child’s guilt,” (18:20).

the Roman soldiers and early Christians, who despite communal mandates and accepted cultural values found strength and a form of self-expression in the adornment of the body with the corporal mark of the tattoo. Thus, it may have been the case that Israelite culture also maintained a tension between contradicting points of view. And, these different texts show these different points of view: Leviticus 19:28 condemned such marks, Isaiah 44:5, 49:16 affirmed them, while Genesis 4:15 and Ezekiel 9:4 simply attested to their presence.

Conclusion:

By taking the Bible out of the cultural vacuum of ancient Israel and placing it among the broader contexts of the ancient Near East, the attitudes on tattoos and the act of tattooing from the perspective of the most ancient form of Judaism was exposed. In light of the evidence from Mesopotamia, Egypt, and the Mediterranean we can say for certain that the ancient Israelites practiced, or minimally were aware of the practice of tattooing. Yet, what the analysis of this chapter demonstrated is that there was no consensus as how to deal with a corporal mark that spawned so many diverse messages and cultural values in the ancient world.

Some passages, such as those from the Book of Genesis and the Book of Ezekiel, merely attested to the use of corporal marks. Uncritically they drew a picture of tattooing in ancient Israel that used the corporal mark as a sign of Divine protection. The corporal mark, from the presentation of the texts, was a clear way to relate the message to keep one's distance from the marked individual as he/she is not to be harmed. In a way, the

mark affirmed an existence of a sacred relationship between the marked individual and God.

Furthermore, not only is Israelite tattooing attested in the Bible, its use is encouraged. As part of the sacred relationship of the eternal covenant, the Book of Isaiah promotes the use of the tattoo as a gesture by the Israelite community to demonstrate their commitment to God. It is a communal gesture which is reciprocated by God as He informs the Israelite people that He has symbolically “engraved” them on the palms of His hands. Similar to the rainbow, circumcision, and Shabbat, the tattoo in ancient Israel was a comforting sign of God’s eternal promise pronounced in the covenant God made with the ancestors, assuring progeny and, for the children of Israel, a return to the land.

While the culture of ancient Israel procured the use of the tattoo for its positive functions as marks of Divine protection and allegiance, apparently it did not incorporate their pejorative implications as well. As we do not have in the Biblical account any sense that tattoos functioned as marks of genuine slavery, as indicators for prisoners-of-war, as punishment for crimes, one may surmise that these functions were aversive to the cultural attitudes of ancient Israel and consequently excluded. Thus, the Leviticus prohibition against corporal marks may have served this exact function. Not excluding all marks, Leviticus 19:28 forbade only those corporal marks which presented a message counter to the Israelite sensitivities included in the collected works of the Bible.

Ultimately, though, this is merely an explanation to harmonize the Levitical prohibition with the other passages of the Bible that attest to the use of corporal marks. Really, no such effort is necessary. As we saw from the evidence from other regions of the ancient

world, multiple positions may be maintained within one culture. In fact, throughout Jewish history the topic of tattooing and how it confronts our collective Jewish attitudes and values will spawn multiple positions without a consensus. These diverse cultural expressions and positions will be explored as the thesis continues to expose the Jewish engagement with the practice of tattooing into the classic, medieval, pre-modern and modern periods of Judaism.

